

IRAQ 2014 HUMAN RIGHTS REPORT

EXECUTIVE SUMMARY

Iraq is a constitutional parliamentary republic. The outcome of the April 30 national parliamentary elections generally met international standards of free and fair elections and saw the peaceful transition of power from former prime minister Nouri al-Maliki to Prime Minister Haider al-Abadi. On October 18, parliament approved the new prime minister's final cabinet nominations, successfully completing the government formation process. Due to attacks and offensive operations by the Islamic State of Iraq and the Levant (ISIL) during the year, the government lost effective control over large areas of the country, principally in Arab Sunni and some mixed Sunni/Shia areas. Control over the security forces was inconsistent, and the deterioration of the security situation led to a re-emergence of Shia militias, which operated largely outside the authority of the government.

ISIL committed the overwhelming number of serious human rights abuses. In a systematic and widespread fashion, ISIL targeted government officials and members of the security forces as well as civilians, especially Shia, religious and ethnic minorities, women, and children. To a lesser extent, Iraqi security forces (ISF) and Shia militias also reportedly committed abuses in the disorganized security environment.

Destabilizing violence and fighting between government forces and ISIL escalated in Anbar Province at the end of 2013 and spread to other provinces during the year. On June 9, ISIL launched an assault and quickly captured Mosul, the second largest city. Subsequently ISIL forces took control of large areas of Anbar, Ninewa, Salah ad Din, and Diyala provinces. Armed clashes between ISIL and the ISF, including the Peshmerga--the armed forces of the Kurdistan regional government--caused massive internal displacements, with the United Nations estimating more than two million persons forced to flee their homes nationwide. The humanitarian crisis worsened in July and August, as ISIL targeted ethnic and religious minorities, perpetrated gender-based violence, sold women and children off as slaves, recruited child soldiers, and destroyed civilian infrastructure.

Severe human rights problems persisted. Large-scale and frequent killings, the vast majority of which ISIL carried out, destabilized the country. They included the June 10 mass killing of more than 600 inmates, almost all Shia, at Badoush prison near Mosul. ISIL also killed, abducted, and expelled from their homes

members of religious and ethnic groups, including Christians, Shia Shabak, Shia Turkmen, and Yezidis. Simultaneously, but on a much smaller scale, there were unverified reports of government actors and Shia militias killing Sunni prisoners. Widespread corruption at all levels of government and society exacerbated the lack of effective human rights protections.

There were increasing reports of violence and criminal acts perpetrated by Shia militias and volunteers in the Popular Mobilization Committees, which the government established in response to ISIL's incursion. Abuses reportedly included kidnapping, extortion, and killing. Prime Minister al-Abadi called for these groups to come under ISF command and control.

Other significant human rights problems were reported: disappearances; harsh and life-threatening conditions in detention and prison facilities; arbitrary arrest and lengthy pretrial detention, sometimes incommunicado; denial of fair public trial; insufficient judicial institutional capacity; ineffective implementation of civil judicial procedures and remedies; delays in resolving property restitution claims; arbitrary interference with privacy and homes; limits on freedoms of speech, press, and assembly; violence against and harassment of journalists; limits on religious freedom due to violence by extremist groups; restrictions on freedom of movement; large numbers of internally displaced persons (IDPs) and refugees; discrimination against and societal abuse of women and ethnic, religious, and racial minorities; trafficking in persons; societal discrimination and violence against individuals based on perceived sexual orientation and gender identity; and limitations on worker rights.

Terrorist groups, most notably ISIL, on a mass scale committed acts of violence, including killing by means of suicide bombings, improvised explosive devices, execution-style shootings, and beheadings. These groups also engaged in kidnapping, rape, and other forms of violence. Terrorists targeted fellow citizens, including Shia, Sunni, and members of other religious groups or ethnicities, as well as security forces, places of worship, religious pilgrims, schools, public spaces, economic infrastructure, and government officials. The government initiated investigations of ISIL's human rights abuses, for instance the massacre of Air Force recruits at Camp Speicher and the targeted killing of Yezidis in Sinjar, but progress was slow and the status of official prosecutions unknown. Information about investigations or prosecutions of abuses by government officials and members of the security forces was not publicly available.

Section 1. Respect for the Integrity of the Person, Including Freedom from:

a. Arbitrary or Unlawful Deprivation of Life

During the year the security situation dramatically deteriorated due to widespread fighting between the ISF and ISIL (see section 1.g.). There were numerous reports that the government, militias, and terrorist groups committed arbitrary or unlawful killings.

Civilian fatalities in the first half of the year, including civilian police, exceeded total civilian fatalities in 2013; terrorist groups also increasingly targeted police and security forces. Monitoring by the UN Assistance Mission for Iraq (UNAMI), which included nonofficial sources, reported a significant increase in estimated civilian fatalities--from 7,818 in 2013 to at least 12,282 civilian fatalities. June was the deadliest month for civilians since 2008, according to UNAMI, with 1,531 deaths, due to escalated violence between the ISF and ISIL forces. UNAMI estimated that an additional 2,095 civilians were killed in heavily contested Anbar Province from January 1 to October 30.

Agence France-Presse (AFP), relying on government data, reported 7,137 confirmed casualties between January and September, including 615 police officers, 581 soldiers, 178 Kurdish Peshmerga, 81 fighters of the Sahwa (Awakening) movement, also known as the Sons of Iraq, and 1,794 militants. Continued armed clashes in ISIL-controlled areas, including most of Anbar Province, hindered the accurate collection of casualty estimates, with AFP reporting that actual figures were likely significantly higher. AFP estimates also excluded the number of militants killed during June because these figures could not be verified.

Security forces reportedly committed extrajudicial killings, although identification of specific killers was rare. Ministry of Interior officials reportedly tortured detainees to death, according to unverified accounts from human rights organizations (see section 1.c.). The outcomes of official investigations were often unpublished, unknown, or incomplete.

Between June 9 and June 21, Shia militias and security forces reportedly carried out the extrajudicial killing of approximately 255 Sunni prisoners, including at least eight boys under the age of 18, according to the nongovernmental organizations (NGOs) Amnesty International and Human Rights Watch (HRW). Victims were reportedly shot to death, burned, or killed by grenades thrown into their cells, in all but one instance, by Shia guards or militia fleeing ISIL advances.

The vast majority of those killed were reportedly in pretrial detention awaiting charges under the antiterrorism law. On July 13, the Ministry of Interior issued a statement disputing allegations that security forces or police were involved and attributing responsibility to terrorist groups. The Ministry of Human Rights initiated an investigation into the killings, but no updates were available by year's end.

Terrorist activities throughout the country increased significantly during the year, particularly with ISIL assaults on cities across the west and north. ISIL frequently employed suicide attacks and vehicle-borne improvised explosive devices (VBIEDs). Some attacks targeted government buildings or checkpoints staffed by security forces, while others targeted civilians. For example, a complex attack on March 4, including mortar fire followed by a suicide attack by multiple individuals wearing explosive vests in a vehicle rigged with explosives, targeted the Municipal Council building in Samarra, killing at least five civilians and injuring more than 40 others. Attacks on playgrounds, mosques, government sites, civilian homes, and markets, as well as attacks directed at members of the security forces, public officials, journalists, ethnic and religious minorities, and local leaders opposed to ISIL were common. ISIL claimed responsibility for many of these attacks via its social media platforms.

ISIL forces targeted Sunni tribal leaders; Sunnis who cooperated with the government, including the Sahwa movement; and Sunni clerics who refused to recognize ISIL and its caliphate. For example, the Human Rights Ministry and UNAMI reported that on June 14, ISIL executed 12 Sunni clerics from the al-Isra mosque in Mosul for refusing to take an oath of allegiance to ISIL. The UN reported that ISIL executed 12 members of the ISF and Sahwa in Hawija on August 25, and six days later it executed 19 Sunnis in Diyala Province for refusing to pledge allegiance to ISIL. According to the UN, ISIL forces continued to target and kill members of Sunni tribes who refused to affiliate with the terrorist group. In late October media reports indicated that ISIL forces killed hundreds of members of the Albu Nimr tribe--including children and elderly men--outside of Ramadi in Anbar Province.

A number of ISIL attacks targeted Baghdad's Shia-majority neighborhoods. UNAMI estimates recorded an average of 1.66 VBIED attacks per day in Baghdad in the first half of the year. For example, four coordinated explosions occurred in Baghdad nearly simultaneously on July 19, killing at least 27 persons and injuring many others. The first suicide bombing took place at a southern Baghdad checkpoint where soldiers, police, and Shia volunteer fighters were gathered. The

second struck the predominantly Shia neighborhood of Khadimiya. At the same time, two car bombs detonated in Saydiya and Bayaa in western Baghdad. On July 22, another suicide car bomb targeted a checkpoint in the Khadimiya area, killing 21 persons, including seven police officers, and injuring 43 others.

Spillover across the porous border from the civil war in Syria increasingly destabilized the security situation in the country. By late June, ISIL forces seized control of the border with Syria, securing nearly all official border crossings and facilitating movement of foreign fighters and materiel across the border. Media reports confirmed that foreign ISIL fighters from Australia, Germany, and Syria committed several suicide attacks in Baghdad. For example, on July 17, ISIL announced on social media that an Australian member of the terrorist network detonated an explosive vest near a Shia mosque in a market in central Baghdad, killing three and injuring more than 90 persons.

International human rights organizations criticized the increasingly sectarian nature of militia activity and the lack of sufficient government oversight. Prime Minister al-Abadi repeatedly called for the elimination of independent militias and ordered all militia groups brought under ISF authority. Shia religious leaders also called for Shia volunteers to fight under the command of the security forces and condemned violence against civilians, including destruction of personal property. Nevertheless, in the vast majority of cases, Shia militias operated independently and without oversight or direction from the government. International NGOs, Sunni leaders, and the local media accused Shia militias of targeting Sunni communities. According to an October 24 HRW report, Shia militias attacked Sunnis who did not flee ISIL's advance, considering any remaining families "collaborators" and ransacking, burning, and even demolishing several Sunni villages. In November the local media reported that Shia militias razed homes, agricultural fields, and orchards in several parts of Saadia and Jalawla, to the northeast of Baquba in Diyala Province. These reports alleged that militias were altering the demographic composition of these areas by evicting Sunni residents after liberating the area from ISIL. Kurdistan regional government Peshmerga forces allegedly committed similar punitive actions such as razing homes, burning villages, and engaging in mass arrests of Sunni Arabs in ethnically mixed, disputed internal boundaries provinces in post-ISIL clearing operations.

According to the October HRW report, Shia militias kidnapped and killed Sunni civilians in Baghdad, Diyala, and Babil provinces. An August 22 attack on the Sunni Musab bin Omar mosque in Diyala killed more than 70 worshippers. This attack was largely viewed as retribution for ISIL attacks on Shia. Following the

attack the Ministry of Interior detained a Diyala police officer on suspicion of colluding with Shia militias, and parliament launched an investigation. At year's end the investigation continued.

There were significantly fewer reports of killings or other sectarian violence in the Iraqi Kurdistan Region (IKR) than in the rest of the country, although minority groups reported threats and attacks targeting their communities in areas where the Kurdistan regional government had effective control. On April 23, a VBIED exploded in a majority Shabak town in the Hamdaniya District of Ninewa Province, killing 16 persons and injuring more than 35, including children. In addition two suicide bombings on June 6 killed or injured 46 members of the minority Shabak community in Bartalla, east of Mosul. The perpetrators of the bombings were not identified.

ISIL forces advanced into the IKR and neighboring provinces in July and August, causing large-scale displacement of ethnic and religious minorities, including Shabak, Turkmen, Yezidis, and Christians. There were also credible reports that ISIL fighters executed and abducted ethnic and religious minorities (see section 1.g.).

Authorities did not release the results of an investigation into the killing of Sunni Member of Parliament Ahmed al-Alwani's brother, Ali al-Alwani, and five bodyguards during a December 2013 raid by Iraqi army and Special Weapons and Tactics (SWAT) forces. During the raid authorities arrested Ahmed al-Alwani on terrorism charges; on November 23, the central criminal court sentenced him to death for killing two soldiers. At the same time as the raid, security forces clashed with Sunni demonstrators in Ramadi and dismantled a yearlong antigovernment protest camp. According to HRW security forces killed 17 persons in the attack. Police alleged that unidentified gunmen opened fire on them, killing three and injuring others. Parliament sent a committee to investigate, but according to HRW, Baghdad Operations Command forces prevented the committee's entry into Anbar Province. Similarly, official investigations of excessive use of force in 2013 by the SWAT teams, elements of the 12th Division of the army, and the federal police in an operation to disperse Sunni protesters from Hawija and related demonstrations in Fallujah and Mosul failed to result in any prosecutions.

There were no known developments in other cases of arbitrary or unlawful killings reported in 2013.

b. Disappearance

Disappearances and kidnappings were regular occurrences, and some kidnappers who did not receive a ransom killed their victims. There were also cases reported in which the abductor killed the kidnapped individual despite ransom payments being provided. Most kidnappings appeared to be financially motivated. ISIL forces and illegal armed groups kidnapped members of ethnic and religious minority communities, as well as Shia and Sunnis. According to UNAMI estimates, there were numerous “execution style” killings of victims kidnapped for ransom or to intimidate members of their communities.

Militias or criminal groups were most often associated with abductions outside of ISIL-controlled areas. For example, kidnapping cases increased throughout the year, with criminals and militias exploiting the security situation to carry out dozens of kidnappings a week in Baghdad either for personal gain or for sectarian reasons. An antikidnapping unit created within the Baghdad Operations Command identified seven kidnapping rings and secured the release of several victims.

Within ISIL-controlled areas, the terrorist group engaged in frequent abductions of members of the security or police forces, ethnic and religious minorities, and other non-Sunni communities. In early June, ISIL took over the Turkish consulate in Mosul, capturing 49 persons including the consul general and three children; ISIL released the hostages on September 20. According to Yezidi activists, ISIL also kidnapped an estimated 1,000 Yezidi men, women, and children and held them hostage in prisons, schools, and other locations in ISIL-controlled territory. The UN estimated that ISIL forces detained more than 2,000 Yezidi women and children, but accurate figures were difficult to establish. In another instance, on June 13, during an assault along the Iraq-Syria border, ISIL forces kidnapped border guards, including 28 Yezidis, and took them across the border to Syria, according to human rights groups. HRW reported that ISIL released 24 Yezidi guards after several weeks following a ransom payment of nearly 1.4 billion Iraqi dinars (\$1.2 million). The whereabouts of the remaining Yezidi guards and 12 Shia guards remained unknown.

ISIL kidnappers also targeted Shia Shabak and Shia Turkmen. According to Shabak groups, during several days in early July ISIL kidnapped more than 96 Shabak from villages near Mosul. From June 10 to July 19, ISIL reportedly abducted 75 Shia Turkmen from the villages of Guba and Shrikhan and the city of Tal Afar. Nine bodies were subsequently located; the others remained missing.

According to public sources, estimates of the number of missing persons from the Saddam Hussein era to 2014 ranged from 250,000 to more than one million and included persons missing due to human rights violations and other atrocities committed during the Saddam regime, as well as persons missing during the Iran-Iraq War and from more recent conflicts. Authorities made public their discovery of nine new mass graves during the year. The Human Rights Ministry reported that the central government had identified 157 mass graves of the Saddam Hussein regime as of June and opened 48 sites since 2010. On May 19, the Dhi Qar Directorate of Martyrdom announced the discovery of a mass grave containing the remains of an unknown number of persons killed during the Shabaniya (Shia) uprising in 1991. On June 5, the Ministry of Martyrs and Anfal Affairs, which oversees the Kurdistan regional government's response to the 1986-89 campaign of extermination and forcible relocation of Kurds and other minority groups by Saddam Hussein's Baath regime, announced three suspected mass graves with remains of 18 bodies from the 1987 Halabja attacks. Following ISIL's June takeover of Tikrit and a nearby military base, the former Camp Speicher, ISIL executed as many as 1,770 men and left their bodies in mass graves (see section 1.g.).

There were no known developments in other cases of disappearances from prior years, including the whereabouts of seven Camp Ashraf residents abducted during a September 2013 attack on the camp (see section 2.d.).

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

Although the constitution expressly prohibits torture in all its forms under all circumstances and also cruel, inhuman, or degrading treatment, government officials as well as local and international human rights organizations documented instances of torture and other abuses by government agents. Police throughout the country continued to use abusive and coerced confessions as methods of investigation. ISIL, however, committed the overwhelming majority of such abuses.

The Human Rights Ministry confirmed that allegations of torture and systematic abuses were pervasive within prisons and detention centers. International human rights organizations documented credible cases of torture and abuse in Ministry of Interior facilities and to a lesser extent in detention facilities overseen by the Ministries of Justice and Defense, as well as in facilities of the Kurdistan regional government, including Interior and Justice Ministry facilities that held women.

HRW contended that widespread torture and systematic abuses continued in detention facilities and reported several instances of torture and rape of female detainees.

As in previous years, accounts of abuse and torture, particularly by police and security forces, during arrest and investigation were common in pretrial detention and after conviction. According to reports by former prisoners, detainees, and human rights groups, methods of torture and abuse included the following practices: putting victims in stress positions, beating them, breaking their fingers, suffocating them, burning them, removing their fingernails, suspending them from the ceiling, overextending their spines, beating the soles of their feet with plastic and metal rods, forcing them to drink large quantities of water while preventing urination, sexually assaulting them, denying them medical treatment, and threatening to kill them. HRW documented reports of threats and cases of sexual assault of female detainees, particularly during arrest and interrogation. For example, interviewed detainees described being kicked, slapped, raped, or threatened with sexual assault by security forces. One woman reported receiving threats that officials would rape her teenage daughter to elicit her confession.

According to July media reports, the Committee of Saudi Prisoners in Iraq issued a statement detailing abuse of Saudi prisoners whom authorities transferred to al-Nasiriyah prison. The statement alleged that security forces entered the prison and beat the prisoners and guards provided razors and glass shards to other prisoners to use in assaults against the Saudi inmates.

The Kurdistan regional government's antiterrorist law allows abusive interrogation under certain conditions, and such practices reportedly occurred in some detention facilities of its internal security unit, the Asayish, and the intelligence services of the major political parties, the Kurdistan Democratic Party's (KDP) Parastin and the Patriotic Union of Kurdistan's (PUK) Zanyari.

The head of the Iraqi Kurdistan Parliament's Human Rights Committee reported that security forces detained and severely beat six activists from the Goran (Change) Movement immediately following the April 30 national parliamentary and regional provincial council elections. The heads of the Parastin and Zanyari did not respond to a parliamentary request to appear for a hearing.

Abuses by terrorist groups were widespread. In particular, ISIL reportedly targeted Shia detainees in prisons under its control. According to UNAMI and the Human Rights Ministry, ISIL militants killed as many as 670 Shia and other non-Sunni

prisoners of Mosul's Badoush prison in June. UNAMI personnel interviewed six survivors of the attack who described how ISIL separated Sunni and Shia detainees, following which they executed the Shia detainees. Several of the bodies found showed signs of torture.

There were indications that government authorities initiated some investigations of security forces accused of committing human rights abuses, although authorities did not make public any investigation reports. The Human Rights Ministry reported that it received and investigated numerous complaints of torture inside prisons and detention centers throughout the country and forwarded the complaints to its "prisons team" to follow up. The ministry demonstrated its capacity to document credible allegations of systematic torture, deaths, forced confessions, and arbitrary detention, but there was no publicly available information at year's end that the government took judicial action against officials in the Justice, Interior, or Defense Ministries in response to allegations of torture.

There were no known developments in cases of torture and abusive treatment or punishment reported in 2013.

Prison and Detention Center Conditions

Conditions at some prison and detention facilities remained harsh and life threatening due to food shortages, overcrowding, and inadequate access to sanitation facilities and medical care. The government temporarily closed some facilities, including Abu Ghraib, due to concern about possible ISIL attacks and relocated prisoners to facilities that were more secure. These movements further exacerbated the overcrowding of prisons outside of Anbar Province. There were also reported cases of abuse and torture in some facilities. The head of the Kurdistan regional government's Human Rights Committee and international observers alleged that both the central government and the Kurdistan regional government operated secret detention facilities. The Human Rights Ministry stated that a facility located in the International Zone in Baghdad, which security forces operated under the control of the Prime Minister's Office, remained vacant at the end of 2013. Due to the secret nature of these facilities, there was no information available to verify whether--or the extent to which--they remained in use.

According to local NGOs and the head of the Iraqi Kurdistan Parliament's Human Rights Committee, prisoners held in regional government-administered Asayish prisons sometimes remained in detention for more than six months without trial.

Physical Conditions: The Iraqi Corrections Service (ICS) --the only government entity with the legal authority to hold persons after conviction--managed 24 correctional facilities; three (Abu Ghraib prison, Badoush prison, and Baghdad al-Balahdiyat prison) were not operational due to the security situation. The total intended capacity of ICS facilities was approximately 27,600 according to the Ministry of Justice. The ICS reported 27,600 inmates as of November, including 14,500 serving sentences for civil crimes and 6,000 for terrorism offenses; 5,900 were pretrial detainees. UNAMI reported 30,205 convicted prisoners and pretrial detainees in Justice Ministry facilities as of April. In the IKR the regional government's facilities held 2,486 convicted prisoners, including 84 women, as of August. No information was available on prisoners or detainees in undeclared facilities of Asayish and the Kurdistan regional government intelligence service. Authorities held men and women in separate facilities and separated detainees from convicts in most cases. Prisoners facing terrorism charges were isolated from general prisoners and were more likely to remain in harsher conditions in Ministry of Interior facilities.

As of December 1, the Ministry of Justice reported a total juvenile population of 172 in holding facilities and detention centers, not including the IKR. Although the government held most juvenile pretrial detainees and convicts in facilities operated by the Ministry of Labor and Social Affairs as the law requires, international and local NGOs reported that authorities held some juveniles in Justice Ministry prisons, Interior Ministry police stations, and other Interior Ministry detention facilities. In the IKR juvenile prisons held 70 pretrial detainees and 233 convicted prisoners at year's end. The IKR's juvenile reformatories and women's prisons were located on the same compounds but in different corridors. In some Asayish detention centers and police-run jails, Kurdistan regional government authorities occasionally held juveniles in the same cells as adults. Regional government officials acknowledged that education and vocational training were not available to all prisoners.

Some Justice, Interior, and Defense Ministry authorities reported that conditions and treatment of detainees were generally poor. Overcrowding was a persistent problem in most facilities. Many inmates lacked adequate food, water, exercise facilities, vocational training, and family visitation. Access to medical care was inconsistent. Some detention facilities did not have an onsite pharmacy or infirmary, and authorities reported that existing pharmacies were undersupplied. Women's prisons often lacked adequate child-care facilities for inmates' children, whom the law permits to remain with their mothers until age four. Limited

infrastructure or aging physical plants in some facilities compounded marginal sanitation, limited access to potable water, and poor quality food.

ISIL reportedly operated three facilities in areas under its control, including the Justice Ministry's Badoush prison in Mosul, and two Ministry of Interior prisons in Ninewa Province. Due to the lack of access and information, the conditions and numbers of individuals detained in these facilities was unknown.

Administration: The fractured penal structure continued to complicate detention and prison operations. By law the Justice Ministry retains full administrative authority over all detention facilities (including two prisons in the IKR), except for the Defense Ministry's military justice facilities and the facilities of the Kurdistan regional government's Ministry of Labor and Social Affairs. Nevertheless, the government did not implement uniform oversight of detention facilities, and the Defense Ministry continued to hold civilian detainees, while the Interior Ministry continued to hold convicted prisoners.

The following various entities operated prison and detention facilities in the IKR: the Ministries of Justice, Interior, and Labor and Social Affairs; the internal security unit (Asayish); the KDP-affiliated intelligence services (Parastin); and the PUK-affiliated intelligence services (Zanyari). Authorities of the Kurdistan regional government's Ministry of Labor and Social Affairs supervised all convicted detention facilities as well as pretrial detention facilities for women and juveniles. The regional Ministries of Interior and of Labor and Social Affairs operated six prisons, one for men and another for women and juveniles in each of the three provinces in the IKR.

Recordkeeping on prisoners was reportedly inadequate and hindered the government's ability to identify the more than 500 prisoners who escaped in 2013 following assaults on Taji and Abu Ghraib. The government was also not able to identify those who escaped, were illegally released, or were killed by government forces, militias, or ISIL forces throughout the year (see section 1.a.). The government also transferred thousands of prisoners from Abu Ghraib prison and other Ministry of Justice prisons in Mosul and Kirkuk due to concerns about inadequate security, in view of ISIL's advances in these areas and its record of killing or releasing prisoners. According to officials at the Ministry of Interior, the Justice, Defense, and Interior Ministries and the Counterterrorism Service each maintained their own records of detainees, although some facilities held individuals detained by several entities, making it difficult to account for all of a facility's detainees. In addition many human rights organizations reported that

prison guards or arresting officers released detainees after the detainees paid a bribe, a practice that further contributed to inaccurate detainee record keeping.

The government took steps to develop enhanced systems for maintaining prison records, yet progress remained stalled. The Ministry of Justice reported that the government was developing a unified database to track prisoners in justice, interior, and defense prisons. In the meantime the ICS relied on a single central computer to track prisoner statistics, which each ICS prison facility provided to the ministry on a regular basis.

There were no known examples of penal or judicial authorities using alternatives to incarceration for nonviolent offenders.

ICS prisons maintained visitation programs that allowed regular visits by family members, legal counsel, and independent nongovernmental observers. Nevertheless, international and local human rights groups reported that authorities in numerous cases denied family visits to detainees and convicts. In many cases guards allegedly demanded bribes when detainees asked to telephone their relatives or legal counsel. Following the escalation in the conflict with ISIL in June, the Ministry of Justice temporarily restricted visits by family members due to security concerns, according to the local media and human rights groups. Prison officials generally permitted detainees religious observance and in some cases divided detainees into cellblocks by religion or sect.

The Human Rights Ministry reported that prisoners and detainees in Justice Ministry facilities were able to submit complaints to the ministry without censorship; the ministry publicly reported complaints, but there was no information available at year's end as to whether authorities investigated credible allegations of inhumane conditions. The Ministry of Justice operated human rights offices in 20 prisons to collect reports on prison conditions for the ministry's human rights division. The ministry also supported two citizen complaints offices to handle problems related to public inquiries or complaints. Within prisons, the ministry established complaint boxes for inmates to provide anonymous feedback to the ICS; the prison director, a social worker, and a legal officer reviewed the complaints.

Independent Monitoring: ICS prisons allowed regular visits by independent nongovernmental observers and government officials. The Ministry of Justice reported that independent organizations conducted 396 visits to ICS facilities in 2013. The International Committee of the Red Cross (ICRC) continued to have

access to Justice, Interior, Defense, and Labor and Social Affairs Ministry prisons and detention facilities. Authorities also granted prison and detention facility access to UNAMI, HRW, and the independent Iraqi High Commission for Human Rights. The Human Rights Ministry reported that authorities routinely denied the ministry's prison monitoring teams access to Ministry of Interior facilities. For example, on April 20, a member of parliament's Human Rights Committee told the media that prison administrators banned committee visits without a prior approval from the prime minister. There were reports of institutional interference in prison visits and in some cases advance notification to wardens and prison officials of visits by outside monitors.

From January to November, the ICRC conducted more than 100 visits to 62 prisons and transitory places of detention under the administration of the Ministries of Justice, Interior, and Defense. Apart from the temporary suspension of visits to some facilities located in areas of active conflict, the ICRC continued to conduct visits to detention facilities located throughout the country. UNAMI resumed inspections of Justice Ministry prison and detention facilities and conducted four prison visits in Baghdad and three visits in Basrah and Dhi Qar. Due to the deteriorating security situation, inspections of ICS facilities became more difficult; as a result, in April UNAMI suspended prison visits outside the IKR.

The Kurdistan regional government generally allowed international human rights NGOs and intergovernmental organizations to visit convicted prisoners and pretrial detainees but occasionally delayed or denied groups access to some individuals, usually in sensitive cases involving terrorism. The UNAMI Human Rights Office and ICRC inspected prisons and detention facilities. From January through November, UNAMI conducted 59 visits to prisons and other detention facilities, and through December 2, the ICRC conducted 54 visits to various places of detention in the IKR.

Among independent organizations, local NGOs, the ICRC, and the UNAMI Human Rights Office had regular, but sometimes delayed, access to Kurdistan regional government internal security and intelligence service facilities.

Improvements: The provision of electricity, particularly at ICS facilities, continued to improve, according to the Human Rights Ministry and UNAMI. The Justice Ministry refurbished prisons and constructed new facilities to enhance detainee conditions, but progress in this area was subject to bureaucratic and budgetary delays. Many Justice Ministry detention facilities improved as the ministry brought them in line with international standards, and the ministry

classified five of the 24 operational facilities as meeting necessary international human rights criteria. UNAMI officials reported receiving almost no claims of abuse from persons under Justice Ministry authority; reports of torture and abuse were most often related to pretrial detention in interior and defense facilities. In addition UNAMI reported that the ministry expanded education and vocational training opportunities for inmates in a number of prisons.

The Justice, Defense, and Interior Ministries, as well as the counterterrorism service, reported that employees at detention and prison facilities received human rights training provided by their respective ministry. In Justice Ministry facilities, the Human Rights Office conducted this training; ministry officials did not provide copies of the curriculum to human rights groups. UNAMI previously conducted human rights sensitivity training, but due to the deterioration in the security situation, UNAMI suspended training outside of the IKR. The Human Rights Ministry also provided human rights training to prison guards and security staff.

d. Arbitrary Arrest or Detention

The constitution provides some basic legal safeguards against arbitrary arrest and detention, although emergency laws give security forces broad discretion over arrest and detention when the government has declared a national emergency. During the year there continued to be many reports of arbitrary arrests and detentions. The Human Rights Ministry alleged that the “majority of arrests...were carried out without a legal warrant.” In its February 6 report focusing on the abuse of women in the criminal justice system, HRW documented cases of at least 15 women whom police or security officials detained during a roundup of the women’s entire family or village. A member of the Iraqi Kurdistan Parliament reported that during the year Kurdistan regional government security forces detained without charge family members of young men from Erbil who had traveled to Syria to fight with ISIL.

On December 2, Prime Minister al-Abadi issued Executive Order No. 57, which prohibits the arrest or remand of individuals except by an order issued by a competent judge or court or in the conditions warranted by law, including articles 102 and 103 of the code of criminal procedures. The authority that enforced the arrest warrant or detention is required to register the detainee name, place of detention, reason of detention, and legal article within 24 hours of the detention in the government’s central electronic and manual registers. The Ministry of Justice is then responsible for updating and managing these registers. The Ministries of Defense and Interior and the National Security Service are required to establish

guidelines and mechanisms for commanders to register detainees' details in this central register. The executive order also prohibits any entity, other than legally competent authorities, to detain any person. According to the executive order, abduction and illegal detention are considered criminal acts and perpetrators are to be brought to justice.

Prison authorities sometimes delayed the release of exonerated inmates pending the receipt of bribes. For example, on July 24, the Iraqi Commission of Inquiry's Seizure Team apprehended a Ministry of Interior employee of al-Karkh central prison who demanded a bribe from the family of an inmate to carry out a release decision. In its February 6 report, *No One Is Safe*, HRW pointed to multiple examples of lengthy delays and demands for bribes before releasing female detainees. The Human Rights Ministry denied the allegations, stating that such delays were due to continuing investigations on separate charges. According to UNAMI, inmates whom the Ministry of Justice ordered for release continued to face delays from the Ministry of Interior or other ministries to clear their record of other pending charges.

Due to persistent complaints about such delays, the prime minister's December 2 executive order also mandates legal limits on detentions of those individuals who were not charged and expedites the release of those detainees who were ordered freed by the courts. The order requires the Justice Ministry to compile a list of all detainees, including date of arrest, summary of the proceedings, and other case details. This new reporting requirement was designed to remedy due process complaints concerning temporary detainees.

ISIL, in the areas under its control, undertook a campaign to silence any dissent to its rule. For example, ISIL carried out mass detentions in Mosul over a two-week period in September, with estimates that it took as many as 2,000 individuals into custody, according to local activists. The detainees, who reportedly included Yezidis, Shabak, Turkmen, and a small number of Christians, were believed to be former police or army officers. News reports stated that on September 11-12, ISIL apprehended and then executed 31 former police officers.

Role of the Police and Security Apparatus

The ISF consists of internal security forces administratively organized within the Interior Ministry, external security forces under the control of the Defense Ministry, and the Counterterrorism Service. Interior Ministry responsibilities include domestic law enforcement and maintenance of order relying on the Federal

Police, Provincial Police, Facilities Protection Service, and Department of Border Enforcement. Conventional military forces under the Defense Ministry are responsible for external defense, but, working with elements of the Interior Ministry, they often also carried out counterterrorism and internal security operations. The Counterterrorism Service reports directly to the Prime Minister's Office and oversees the Counterterrorism Command, an organization that includes the three brigades of special operations forces.

The government rarely investigated reported human rights violations committed by ISF personnel and rarely punished perpetrators. There was no information available on official punishment for human rights violations. The minister of defense publicly called for holding perpetrators of human rights abuses within the security forces accountable.

There were accounts of torture and abuse throughout the country in Interior Ministry police stations and Defense Ministry facilities. According to UNAMI and international human rights organizations, abuse took place primarily during detainee interrogations while in pretrial detention. The Interior Ministry did not release the number of officers punished during the year, and there were no known court convictions for abuse.

Problems persisted within the country's provincial police forces, including corruption and the unwillingness of some officers to serve outside the areas from which they originated. The army and federal police recruited and deployed soldiers and police officers on a nationwide basis, reducing the likelihood of corruption related to personal ties to tribes or militants. This practice led to complaints from local communities that members of the army and police were abusive because of ethnosectarian differences.

Security forces made limited efforts to prevent or respond to societal violence. Although 16 family protection units operated through police stations around the country to respond to claims of domestic violence by women and children, they lacked management capacity. The Council of Ministers established a lesbian, gay, bisexual, and transgender committee in 2012 to identify victims of targeted discrimination and violence in order to provide adequate protections. The committee did not make a discernible impact by year's end.

The two main Kurdish political parties, the KDP and PUK, maintained their own security apparatuses. Under the federal constitution, the Kurdistan regional government has the right to maintain regional guard brigades, supported financially

by the central government but under the regional government's control. Accordingly, the Kurdistan regional government established a Ministry of Peshmerga Affairs. There are 12 infantry brigades under the authority of the Ministry of Peshmerga Affairs, but the PUK and KDP controlled tens of thousands of additional military personnel, also known as Peshmerga.

The KDP maintained its own internal security unit, the Asayish, and its own intelligence service, the Parastin. The PUK maintained its own internal security unit, also known as the Asayish, and its own intelligence service, the Zanyari. While the PUK and KDP took some nominal steps to unify their internal and external security organizations, they remained separate, since political party leaders effectively controlled these organizations through party channels.

Kurdistan regional government security forces detained suspects in areas the regional government controlled but also in the disputed areas. The poorly defined administrative boundaries between the IKR and the rest of the country resulted in continuing confusion about the jurisdiction of security forces and the courts. ISIL's control of parts of these areas exacerbated this situation.

There was no significant change in the number and pattern of arrests due to the 2011 repeal of article 136(b) of the criminal procedure code, which previously gave ministers the power to prevent the execution of arrest warrants stemming from criminal investigations of employees in their ministries.

Arrest Procedures and Treatment of Detainees

The constitution prohibits "unlawful detention" and mandates that authorities submit preliminary documents to a competent judge within 24 hours of arrest, a period that may extend in most cases to a maximum of 72 hours. For offenses punishable by death, authorities may legally detain the defendant as long as necessary to complete the judicial process. According to local press and rights groups, authorities arrested suspects in security sweeps without a warrant, particularly under the antiterrorism law, and held some detainees for prolonged periods without charge.

The government arbitrarily detained individuals and often did not inform detainees promptly of charges against them. The government periodically released detainees, usually after concluding that it had insufficient evidence for the courts to convict them. For example, in April the government announced the release of 630 detainees due to a lack of evidence. From January to June, the Ministry of Justice

reported the release of 1,543 detainees after competent courts cleared outstanding charges. Many others remained in detention pending review of other outstanding charges. According to the Justice Ministry, it had referred approximately 3,060 cases to the Council of Ministers from January to November. The law allows release on bond for criminal (but not security) detainees. Authorities rarely released detainees on bail. Kurdistan regional government internal security units held some suspects incommunicado without an arrest warrant and transported detainees to undisclosed detention facilities.

The law provides for judges to appoint paid counsel for the indigent. Attorneys appointed to represent detainees frequently complained that insufficient access to their clients hampered adequate attorney-client consultation. In many cases detainees were not able to meet their attorneys until their scheduled trial date. There were reports that defendants did not have access to legal representation during the investigation phase, appointed lawyers lacked sufficient time to prepare a defense, and courts failed to investigate claims of torture while in detention. The Human Rights Ministry acknowledged the need for public defenders and judges far exceeded supply, resulting in delayed trials.

Arbitrary Arrest: Police and army personnel arrested and detained individuals without judicial approval, although there were no reliable statistics available regarding the number of such acts. Authorities often failed to notify family members of the arrest or location of detention, resulting in incommunicado detention. For example, HRW reported that security forces conducted warrantless raids and arrested women for alleged terrorist activities committed by male family members, often their husbands. In July, UNAMI reported that sources in al-Zubair and Abu Khaseeb, predominantly Sunni areas of Basrah, stated authorities had arrested a large number of individuals after ISIL's advances in the north on suspicion of connections with ISIL; authorities released some of them within a day, and others were held for longer periods.

Pretrial Detention: Pretrial detainees represented approximately 20 percent of the total population of those incarcerated in Justice Ministry ICS facilities, according to ICS data. By law other ministries, including Defense, Interior, and Labor and Social Affairs, may hold pretrial detainees. Although there were no independently verified statistics concerning the number of pretrial detainees in government facilities, most individuals in Interior and Defense Ministry facilities were reportedly pretrial detainees. In the IKR there were 3,032 pretrial detainees, including 42 women, at various Kurdistan regional government facilities as of August 6.

Lengthy detentions without due process and without judicial action were a systemic problem. The lack of judicial review resulted from several factors, including a large number of detainees, undocumented detentions, slow processing of criminal investigations, an insufficient number of judges and trained judicial personnel, authorities' inability or reluctance to utilize bail or other conditions of release, lack of information sharing, bribery, and corruption. Overcrowding of pretrial detainees remained a problem in many detention facilities. There were allegations of detention beyond judicial release dates as well as unlawful releases.

Authorities held many detainees for months or years after initial arrest and detention, particularly those detained under the antiterrorism law. Authorities sometimes held detainees incommunicado, without access to defense counsel or without formal charge before a judge within the legally mandated period. For example, according to HRW accounts, security officers and judges collaborated to keep women detained on "suspicion of terrorism" charges, then demanded bribes to secure their release. Authorities at times detained spouses and other family members of fugitives, mostly Sunnis wanted on terrorism charges, as proxies to pressure the fugitives to surrender.

To address the issue of lengthy detentions, the prime minister issued an executive order on December 2 mandating that, without prejudice to any valid legal texts, detention should not be extended for more than six months except under permission from the Criminal Court, provided that it not exceed one quarter of the maximum penalty or that the court decides to release the subject on bail while observing the law.

Kurdistan regional government authorities reportedly held detainees for extensive periods in pretrial detention. According to local NGOs and the head of the Iraqi Kurdistan Parliament's Human Rights Committee, prisoners held in regional government-administered Asayish prisons sometimes remained in detention for more than six months without trial.

Amnesty: There were reports that the central government granted amnesty, but the government did not confirm the number of individuals released. The Ministry of Justice submitted recommendations to the general secretariat of the Council of Ministers' legal department for final adjudication. In the IKR there were no reported cases of amnesty.

Denial of Fair Public Trial

The law provides for an independent judiciary, although certain articles restricted judicial independence. The country's security situation and political history left the judiciary weak and dependent on other parts of the government. In addition in 2013 the Supreme Court overturned a court order mandating the separation of the Federal Supreme Court and the Higher Judicial Council, thus allowing one individual to head both the court, which rules on issues related to federalism and constitutionality, and the council, which manages and supervises the court system, including disciplinary matters. Local and international press claimed the decision was politically motivated and undermined judicial independence.

There were reports that corruption influenced authorities' willingness to respect court orders, except those concerning national security. For example, the Integrity Committee of the Council of Representatives reported that Interior Ministry and Justice Ministry employees demanded payment from detainees to release them.

Threats and killings by sectarian, tribal, extremist, and criminal elements impaired judicial independence. Judges, lawyers, and their family members frequently faced death threats and attacks. Lawyers participated in numerous protests demanding better protection from the government against threats and violence. Judges were also vulnerable to intimidation and violence. Corruption or intimidation reportedly influenced some judges presiding over criminal cases at the trial level and on appeal to the Court of Cassation. The Commission of Integrity routinely investigated judges on corruption charges, but there were numerous reports that such investigations were often politically motivated.

By law the Kurdish Judicial Council was financially and administratively independent from the federal Ministry of Justice, but the Kurdistan regional government executive continued to influence politically sensitive cases.

Trial Procedures

The constitution provides all citizens the right to a fair trial. Observers, including some government officials, the United Nations, and NGOs, reported that trial proceedings fell short of international standards. Although investigative, trial, and appellate judges generally sought to enforce the right to a fair trial, defendants' insufficient access to defense attorneys was a serious defect in proceedings. Many defendants met their lawyers for the first time during the initial hearing and had limited access to legal counsel during pretrial detention. Trials were public, except in some national security cases, but some faced undue delays.

The law considers an accused person innocent until proven guilty and gives detainees the right to be informed promptly and in detail of the charges as well as the right to a privately retained or court-appointed counsel, at public expense if needed. Officials routinely did not inform defendants promptly or in detail of charges against them. Judges assemble evidence and adjudicate guilt or innocence. There is no right to a trial by jury. Defendants and their attorneys have access to government-held evidence relevant to their cases before trial and have the right to confront witnesses against them and present witnesses and evidence. In many cases forced confessions served as the only source of evidence without the corroboration of forensic evidence or independent witness testimony, according to Amnesty International. The law provides the right to appeal, although there is a statute of limitations for referral; the Court of Cassation reviews criminal cases on appeal.

Kurdistan regional government officials noted that prosecutors and defense lawyers encountered obstacles in carrying out their work and that prisoners' trials were unnecessarily delayed for administrative reasons.

Political Prisoners and Detainees

The government did not consider any incarcerated persons to be political prisoners or detainees and stated that all individuals in prison had been either convicted or charged under criminal law or were detained and awaiting trial while under investigation.

It was difficult to assess claims that there were no political prisoners or detainees due to the lack of government transparency, prevalence of corruption in arrest procedures, slow case processing, and inaccessibility of detainees, especially those held by counterterrorism, intelligence, and military authorities. Political opponents of the government and some detainees asserted the government imprisoned or sought to imprison persons for political activities or beliefs under the pretense of criminal charges ranging from corruption to terrorism and murder.

In the IKR similar factors obscured a reliable assessment concerning political prisoners and detainees. The 21st court session for Niaz Aziz Saleh took place on August 18, but a local NGO assisting with his defense reported that Kurdistan regional authorities did not bring Saleh to the court to participate in the proceedings or to meet with his lawyer. In 2012 Asayish forces detained Saleh, a former KDP headquarters official accused of leaking information regarding alleged

KDP vote rigging in the 2009 IKR parliamentary election, to the independent magazine *Levin*. According to a 2013 Amnesty International report, Asayish officials repeatedly beat Saleh in his first three months of detention.

Civil Judicial Procedures and Remedies

Individuals and organizations may seek civil remedies for or cessation of human rights violations. Administrative remedies also exist, although due to the overwhelming security focus of the executive branch, coupled with an understaffed judiciary dependent on the executive, the government did not effectively implement civil or administrative remedies for human rights violations. In January, in collaboration with the Iraqi High Commission for Human Rights, the Higher Judicial Council formally established special courts to investigate human rights violations and reports of abuse wherever there is a court of appeal. By year's end the courts were not operational, pending legal training on human rights subjects for prosecutors and judges and clarification of the referral procedures.

Kurdistan regional government law provides for compensation to persons subject to unlawful arrest or detention. The Kurdistan regional government's Ministry of Martyrs and Anfal Affairs handles compensation for unlawful arrests or detentions, and its Human Rights Commission reported that while approximately 8,000 cases (including many historical cases) received approval for compensation, the government was not able to pay compensation due to the lack of a budget for the year.

Property Restitution

Delays and corruption prevented the government from effectively adjudicating property restitution claims. The deteriorating security situation also negatively affected resolution of pending claims. The Property Claims Commission, an independent governmental commission, resolved claims for property unjustly seized between 1968 and 2003 by the Saddam Hussein regime. The process was intended to benefit those whose land was confiscated for ethnic or political reasons as part of that regime's Arabization program and other sectarian displacement policies. The commission adjudicated approximately 90 percent of claims; the Court of Cassation continued to review the remaining outstanding claims.

Since 2003 more than 30,000 wafadin (Arabs previously settled in the Kirkuk region under Saddam Hussein's anti-Kurdish policies) returned to their previous homes in the center and south of the country and applied for compensation. As the

wafadin left, the Article 140 Commission, which the government established to fulfill its obligation to undertake “normalization” measures as called for in the constitution’s article 140, reviewed and paid their claims. Article 140 mandates that the executive authority implement the Transitional Administrative Law’s article 58, which sets required measures to “remedy the injustice caused by the previous regime’s practices in altering the demographic character of certain regions, including Kirkuk.” These measures include restoring former residents to their homes and property while resettling and compensating newly introduced individuals. The head of the Article 140 Commission’s Kirkuk office sent files of 11,743 claimants to Baghdad for compensation by August 31, but he stated that the federal government continued to delay settlement of the cases. The lack of a national budget impeded payment of approved settlements.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The constitution mandates that authorities may not enter or search homes except with a judicial order. The constitution also prohibits arbitrary interference with privacy, but security forces often entered homes without search warrants.

During the year ISIL fighters entered homes, destroyed or looted private property, and converted houses into operational bases. In particular ISIL targeted religious and ethnic minorities, forcing members of such communities out of their homes and confiscating all their belongings, including valuables, at checkpoints. For example, after taking over Mosul in June, ISIL militants marked the homes of Christian families and gave them until July 19 to depart the city, pay a tax, convert to Islam, or face execution. ISIL confiscated all their property as the families fled the city, and those who departed received no compensation.

g. Use of Excessive Force and Other Abuses in Internal Conflicts

The conflict between ISIL and the ISF led to a significant deterioration in the human rights situation during the year. The conflict, which intensified in January following armed clashes between the ISF and ISIL in Anbar Province, further escalated in June when ISIL launched an offensive and took control of Mosul, Tikrit, and other areas in the north. By November continued violence had displaced more than two million persons, according to UN figures. Human rights abuses included mass execution, indiscriminate use of force, abductions, and repression of ethnic and religious minority communities. The United Nations reported that the minimum number of civilian casualties between January and the end of October was 8,571 killed and 13,787 injured.

Killings: In attempts to drive out ISIL from northern and western areas, the government targeted ISIL bases, many of which were located in populated civilian areas. Throughout the year the government escalated its use of force, leading to the deaths of a number of civilians, including children. ISF helicopters and airplanes conducted shelling and aerial bombardment of suspected ISIL locations and infrastructure in civilian neighborhoods, particularly in Anbar Province. The medical directorate for Anbar recorded 2,095 persons killed from January to October, some of whom were women and children, due to repeated shelling of residential neighborhoods in Fallujah and Ramadi. Unverified reports from Anbar residents, medical professionals, and aid workers acknowledged that casualty figures were likely to be much higher because many individuals could not reach hospitals due to the fighting.

Following ISIL's advances in June, ISF attacks on ISIL locations in civilian areas increased. HRW alleged that security forces killed at least 75 civilians and injured others in June and July during air strikes on Fallujah, Bayji, Mosul, Tikrit, and al Sherqat. In one reported case, an ISF aerial bombardment on July 20 of residential areas in Sulayman Bek, east of Tikrit, killed or injured 29 persons, including women and children. HRW reported that the ISF used barrel bombs, which caused 17 deaths in the attack.

The Human Rights Ministry denied reports that security forces committed violations against civilians, stating the government warned civilians to evacuate prior to ISF attacks. During the year the military also took steps to adjust its tactical operations to prevent undue loss of civilian life. For example, in August the air force distributed flyers to civilians in areas near Mosul to warn them to evacuate from the area to avoid injury in the event of an ISF attack. Prime Minister al-Abadi announced on September 13 that he had ordered the air force to stop air strikes against targets in civilian areas.

There were reports by human rights groups and the media of increased sectarian violence, including targeted killing of Sunni civilians suspected of having a connection to ISIL because they were Sunnis living in ISIL-controlled territory. Successful airstrikes and ISF ground operations to liberate ISIL-controlled areas created civilian security vacuums into which Shia militias moved. According to HRW the situation worsened during the year, and Sunni civilians, in the face of Shia militia violence and absent effective government security, either aligned with ISIL or faced displacement from their homes. As Sunni tribes turned against the

terrorist group and fought with the ISF, ISIL conducted mass executions of tribesmen.

According to the United Nations and international human rights organizations, Shia militias--with participation or noninterference from the military and police--allegedly carried out extrajudicial killings of more than 200 Sunni detainees in June (see section 1.a.). For example, HRW documented the killing of 61 Sunni men between June 1 and July 9, as well as the killing of at least 48 Sunni men in March and April in towns around Baghdad. Witnesses, as well as medical and government sources, told HRW researchers that militias were responsible in each case. On July 30, police reported that militia forces executed 15 Sunnis and hung them by electricity poles in a public square in the town of Baqubah. UNAMI warned of increased violence toward Sunnis, particularly in the south, noting that since June at least 19 Sunni civilian men had been killed and 19 others injured in a spate of killings and abductions. Sunnis also received anonymous threats to leave Basrah or face death, according to UNAMI sources. It was unclear whether these allegations were investigated.

The United Nations, international human rights groups, and the media reported that ISIL executed hundreds of noncombatants, primarily captured soldiers or those who surrendered, military conscripts, police, and others associated with the government. The majority of those killed were Shia. For example, ISIL conducted mass executions in Tikrit and at a military base, the former Camp Speicher, in June after seizing control of the city. According to UN statements, ISIL killed as many as 1,700 men in mass execution sites after the June 11-12 takeover of Camp Speicher. ISIL claimed responsibility for the killing, posting photographs and videos on social media sites. The photographs showed ISIL militants apparently firing their weapons at young men packed closely together in large groups with hands bound behind their backs. In another instance the Human Rights Ministry announced that ISIL executed 175 Iraqi Air Force recruits in Tikrit on June 22. The government recovered the bodies of 11 victims from the Tigris River and reported that others were buried in a mass grave.

ISIL forces also targeted minorities. During an early August assault on Sinjar in the northern part of the country, ISIL killed at least 500 Yezidis, including women and children, and buried some victims alive, as the Human Rights Ministry documented in its report on ISIL atrocities. According to international media, ISIL seized the Yezidi village of Kocho on August 15, gathered boys and men older than 10 years of age, executed 84 of them, and kidnapped as many as 300 women.

According to media reports and the United Nations, ISIL increasingly targeted and killed members of Sunni tribes who refused to affiliate with the terrorist group. In late October and early November, a series of mass graves were found, and the government estimated that ISIL massacred nearly 800 members of the Albu Nimr tribe--including children and elderly men--in Anbar Province because of their resistance to ISIL. Numerous reports of ISIL abductions, public executions, and massacres of Sunni tribes emerged as members of these Sunni tribes increasingly turned against the terrorist group.

Throughout the year ISIL also targeted civilians, detonating VBIEDs and suicide bombs in public markets, security checkpoints, and predominantly Shia neighborhoods. Armed ISIL fighters also deployed in or near populated areas and failed to take precautions to avoid civilian casualties.

Abductions: There were reports of abductions by militias, illegal armed groups, and other unknown actors. In some cases individuals were kidnapped due to their ethnic or sectarian identity; in other cases individuals were abducted to destabilize the political process. For example, HRW alleged that militias kidnapped Sunni civilians in Baghdad, Diyala, and Babil provinces. In another instance unknown assailants abducted Riyadh Al-Adhath, chair of the Baghdad Provincial Council, from his home during a sensitive period in the government formation process but released him several hours later. No update on the status of an investigation into his abduction was available at year's end.

According to unverified media reports, security and police officials alleged that Shia militias compiled "hit lists" of suspected Sunni insurgents to kidnap or execute. While the militias claimed to be securing the country from terrorist activity, the lack of oversight and accountability raised concerns of extrajudicial activity and impunity, and risked exacerbating sectarian conflict.

An October 31 press statement by the UN secretary-general to the Security Council documented ISIL's abduction of members of the Yezidi, Christian, and Turkmen Shia communities since its advance in the north. ISIL targeted religious and ethnic minorities, as well as women and children, some of whom the terrorist group held for ransom before releasing while sexually assaulting, torturing, and killing others (see also section 1.b.). International human rights groups, including HRW, detailed ISIL's abduction of 200 Turkmen, Shabaks, and Yezidis from Mosul in June. According to the UN secretary-general's report, UNAMI confirmed reports that ISIL abducted as many as 2,500 women and children during the year.

According to Yezidi groups, in August ISIL kidnapped at least several hundred Yezidi women and girls from the Sinjar District of Ninewa and used some of them as sex slaves (see section 6, Other Societal Violence). Some Yezidi sources claimed that ISIL may have abducted as many as 4,000 women and children, but lack of security in the area prevented an independent assessment of the numbers.

Physical Abuse, Punishment, and Torture: Reports from international human rights groups alleged that government forces and Shia militias abused prisoners and detainees, particularly Sunnis (see section 1.a.).

ISIL reportedly used brutal tactics to abuse, punish, and torture individuals connected to the security services and government, as well as those they considered apostates, such as Yezidis, according to international human rights organizations. The Human Rights Ministry and the United Nations reported multiple cases of rape and sexual assault carried out by ISIL and its affiliates; in one case four girls committed suicide after ISIL militants sexually assaulted them in Mosul.

Child Soldiers: There were no reports that ISF conscripted or recruited children to serve in the security services. According to UNAMI, militia groups and ISIL recruited children to serve as informants, checkpoint staff, and suicide bombers. Recruitments took place in areas of active conflict, as well as in Baghdad. Witnesses, including UN staff, observed children wearing uniforms, carrying weapons, and serving at checkpoints. UNAMI reported that children between ages 13 and 18 also voluntarily joined ISIL and militia groups, particularly in Mosul, Fallujah, Ramadi, Tikrit, Samarra, and Baghdad. There were some reports of abductions of boys between ages 13 and 18 by unidentified armed groups. These reports were difficult to verify. See also the Department of State's annual *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

Other Conflict-related Abuses: Active areas of conflict continued to disrupt the lives of hundreds of thousands of persons throughout the country, particularly in Baghdad and the IKR, but also in Anbar, Ninewa, Salah ad Din, and Diyala provinces. Roads, bridges, and critical infrastructure sustained damage due to fighting, and roadblocks established by the government, militias, and ISIL impeded the flow of humanitarian assistance to communities in need.

Fighting between the ISF and ISIL caused damage to civilian institutions, including hospitals as well as water and energy infrastructure. For example, in June and July ISF repeatedly shelled areas of Fallujah in efforts to push out ISIL

forces, resulting in accidental damage to Fallujah Hospital. Reports from international aid organizations also confirmed that shelling in Tikrit on June 13 damaged the main hospital as well as a clinic of the NGO Doctors Without Borders. The ICRC reported that hospitals in conflict areas were operating at reduced capacity or stopped functioning altogether.

Reports of ISIL's targeting and destruction of civilian infrastructure were common, including attacks on roads, religious sites, and hospitals. On July 29, according to local and international media reports, ISIL forces used multiple improvised explosive devices to destroy a strategic bridge on the Tigris River near Samarra located on the main highway connecting Mosul and Tikrit to Baghdad. ISIL also surrounded the largely Shia Turkmen community of Amerli in Salah ad Din for more than a month, preventing access to humanitarian aid and causing food, water, and fuel shortages for the community of 15,000 Turkmen.

ISIL systematically attacked religious and minority communities and their cultural and religious heritage to suppress minority ethnic and religious groups in areas under its control. ISIL repeatedly destroyed religious and cultural sites, including mosques, churches, and shrines. Between July 23 and August 3, ISIL destroyed the Shia shrines of Sayida Zainab and Saiyed Zakariya in Sinjar, the Sunni shrine of Imam Yahya Abu al-Qasim in al-Shafa, and the tomb and mosque of the Prophet Jonah. On July 27, ISIL destroyed the centuries-old tombs of two Sufi sheikhs in Mosul. Between August 28 and 31, in Hamdaniya in Ninewa Province, ISIL bombed four ancient shrines of the Kakai, a largely Kurdish religious minority oriented toward mysticism.

The Human Rights Ministry alleged that ISIL used civilians, including women and children, to shield combatants during fighting with the ISF, including in Fallujah.

Section 2. Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The constitution broadly provides for the right of free expression that does not violate public order and morality or express support for the banned Baath Party or for altering the country's borders by violent means. The main limitation on individual and media exercise of these rights was self-censorship due to credible fear of reprisals by the government, political parties, ethnic and sectarian forces, terrorist and extremist groups, or criminal gangs.

Freedom of Speech: Despite the constitutional protection for freedom of expression, the 1968 Publications Law provides, if authorized in the future by the prime minister, for fines or a prison sentence of up to seven years for any person convicted of publicly insulting the Council of Representatives, the government, or public authorities. Individuals were able to criticize the government publicly or privately, but not without fear of reprisal.

Press Freedoms: While the media was active and expressed a variety of views largely reflecting political party positions, it also practiced some degree of self-censorship to comply with the government's restrictions against violating public order. Political parties strongly influenced, or controlled outright, most of the several hundred daily and weekly print media publications as well as dozens of radio and television stations. For example, in advance of national parliamentary elections in April, the Press Freedom Advocacy Association in Iraq, an organization that monitors the country's media environment, revealed that politicians purchased significant shares in some satellite channels and established news agencies in an effort to influence reporting prior to polling.

International and local organizations reported arrests and harassment of journalists as well as closure of media outlets covering politically sensitive topics including poor security, corruption, and weak governmental capacity. In its 2013 report--the latest available--the NGO Journalistic Freedoms Observatory (JFO) reported 328 cases of abuse against journalists, including 103 arrests, 63 acts of violence, and four assaults by armed groups. The deterioration in the security situation exacerbated harassment of journalists. Government oversight of media operations also tightened, at times resulting in closures of media outlets, restrictions on reporting, and interference with internet service. For example, on July 14, the Communications and Media Commission, a nominally independent but government-run media regulator, told reporters that it would close news outlets that "incite sectarian violence" or support terrorist groups affiliated with ISIL.

Media outlets and domestic organizations supporting press freedom reported raids on their offices. For example, although a court gave Al-Baghdadiya permission to resume operating in the country in April (for the first time since 2010 when authorities closed its offices), HRW reported that plainclothes ISF personnel with no warrant raided Al-Baghdadiya's television studio June 16, confiscating and destroying equipment. International human rights groups alleged the Interior Ministry was responsible for the raid. On June 19, Al-Baghdadiya's owner announced he would permanently close the station's Iraq office due to repeated harassment; in October the local media reported that the station re-opened.

According to the NGO Reporters Without Borders and the Press Freedom Advocacy Association in Iraq, on July 15, unidentified gunmen stormed the headquarters of *Al-Taakhi*, an Arabic-language daily newspaper based in Baghdad and affiliated with the KDP. Editor Badirkhan Sandi alleged that the men arrived in police cars and wore ISF uniforms. The assailants threatened the journalists and confiscated mobile phones, broadcast equipment, computers, files, and vehicles. The Ministry of the Interior ordered an investigation into the attack, but no updates were available at year's end.

The government prosecuted journalists under a law that prohibits defamation and provides penalties of up to one month in prison or a fine of 50,000 to 250,000 dinars (\$43 to \$214). For example, in February, according to the JFO, the Court of Media and Publications issued an arrest warrant for *Al-Mada Baghdad* journalist Sarmad al-Tai, charging him with libel for defaming former prime minister Maliki. Local human rights organizations condemned the arrest as politically motivated; the prime minister's office denied involvement in the case. On December 18, Prime Minister al-Abadi issued an executive order withdrawing all pending legal cases against journalists and affirmed that the media had an important role to play in rebuilding the country and protecting democracy. The JFO welcomed the executive order, which officially nullified the case against al-Tai.

A recent law outlining journalists' rights, which was upheld by the Federal Supreme Court in 2012 but not fully implemented by year's end, offers some legal protection for journalists but qualifies many protections with the phrase "in accordance with existing law," which introduces ambiguity about the actual scope of protection offered. The law fails to address other statutes that criminalize libel and defamation and impose up to seven years' imprisonment for publicly insulting the government. According to international and local NGOs, the law also enhances the power of the progovernment Journalists' Syndicate and reduces media independence. Many journalists believed the law's requirement to provide a copy of their employment contracts to the syndicate might disclose sensitive personal information that could jeopardize their and their families' lives. The Federal Supreme Court upheld the law's constitutionality in 2012, but the government had not fully implemented it.

In the IKR regional government authorities continued to try, convict, and imprison journalists, despite a 2008 law that decriminalizes publication-related offenses. According to syndicate officials, the 2008 law is the sole basis for prosecution of journalists for publication offenses, but prosecution is allowed for offense to public

morals and other crimes. Public officials occasionally resorted to libel charges under criminal and civil law, which in some cases resulted in punitive fines against individual media outlets and editors, often for publishing articles containing allegations of corruption. Local NGO Metro Center reported 79 violations against journalists in the first seven months of the year, an increase compared with the same period in 2013. A Metro Center report stated these violations included Kurdish security forces preventing coverage of certain stories, confiscating equipment, and threatening and beating journalists. In March police arrested and subsequently released on bail television journalist Shoxan Abubakir of Kurdish News Network Television, affiliated with the Goran (Change) Movement, in connection with a lawsuit filed by a citizen alleged by the station to have received 40.8 million dinars (\$35,000) from the speaker of the Iraqi Kurdistan Parliament.

On May 19, according to Reporters Without Borders, KDP forces shut down the Turkish news agency DIHA's office in the IKR and detained some of its personnel; they also reportedly closed the office of the monthly *Rojava Welat*. Both organizations had links to the Kurdistan Workers' Party.

Violence and Harassment: Journalists were targets of government security forces, corrupt officials, terrorists, religious groups that rejected media independence, and unknown persons or groups wishing to limit the flow of news. The JFO reported that kidnappers abducted 65 journalists and advocates for free speech, most of whom they killed. According to UNESCO at least six journalists were killed in the country between January and the end of November.

The intensification of the conflict between the ISF and ISIL put journalists at risk and restricted their movement, further limiting reporting, particularly in Anbar Province. In the second half of the year, reporting from ISIL-controlled areas in the north became increasingly difficult. Journalists covering armed clashes involving government, militia, and ISIL forces faced threats to safety, with several instances of journalists being killed or injured. For example, AFP and press freedom groups reported that a January 20 bomb attack targeting a police patrol in the city of Khalidiya, Anbar Province, killed Firas Mohammed Attiyah, a freelance reporter for Al-Fallujah Television. In another case Alahd Television camera operator Khalid Hamada was killed on June 15 while covering fighting between the ISF and ISIL in Diyala Province, according to the Iraqi Journalists' Syndicate. ISIL also began to restrict access to the internet and telephone service in Mosul.

Media workers often reported that they were under pressure from persons and institutions, including politicians, government officials, security services, tribal

elements, and business leaders, not to publish critical articles about them. They offered accounts of violence, intimidation, death threats, and harassment by government or partisan officials. For example, on June 14, then prime minister Maliki openly threatened to close the offices of two Saudi-funded television stations, Al-Arabiya and Al-Hadath, due to their allegedly biased coverage. According to Reporters Without Borders, the stations broadcast statements by politicians calling for Maliki's resignation, and Al-Arabiya provided live coverage of ISIL attacks on the army.

Military officials, citing safety considerations, restricted access of journalists particularly to areas with active fighting. For example, security forces arrested Al-Sharqiya news reporter Minas Al-Souhil and his camera operator June 15 in Baghdad, despite the journalists' authorization from the Baghdad Operations Command to report from the area. No update on the status of the case was available. Since March 2013 the Ministry of Defense prevented foreign journalists from entering Anbar Province without prior approval from the ministry and the Anbar Operations Command Center.

Throughout the IKR there were numerous shootings, beatings, detentions, and death threats against media workers. In some cases the aggressors wore military or police uniforms. Many attacks targeted independent and opposition media, mainly the independent Nalia Radio and Television; the independent *Hawlati* and *Awene* newspapers; Payama Television, affiliated with the Kurdistan Islamic Group; and the Kurdish News Network Television, affiliated with the Goran Movement, part of the Kurdistan regional government rather than under control of the traditional ruling KDP and PUK parties. On August 17, Nalia Radio and Television stated PUK members threatened to attack the station in revenge for a report critical of the PUK's leadership. On August 18, a trial began for two of three suspects in the December 2013 killing of journalist Kawa Garmiani in Sulaymaniyah Province. The third suspect, PUK Politburo member Mahmood Sangawi, continued to ignore a court summons to appear. In 2012 Sangawi threatened Garmiani's life in a video that was widely circulated on social media.

Censorship or Content Restrictions: The law prohibits producing, importing, publishing, or possessing written material, drawings, photographs, or films that violate public integrity or decency. The penalties include fines and imprisonment. The censorship process relied substantially on self-censorship. Publications reflected the owners' views, and writers understood the "acceptable" limits of reporting. Fear of violent retaliation for publishing facts or opinions displeasing to political factions also inhibited free expression. Content was also reportedly

influenced by public officials rewarding positive reporting by providing money, land, access to venues, and other benefits to journalists, particularly to members of the progovernment Journalists' Syndicate.

On June 18, the Communications and Media Commission issued mandatory guidelines to regulate reporting about insurgent groups and the fight against ISIL. The guidelines forbid coverage of the security forces that could be interpreted as negative and encouraged outlets to focus reporting on the security achievements of the armed forces, including "praising the heroic acts of security personnel," according to a July 3 HRW report. The directive also bans media outlets from broadcasting messages issued by armed groups and prohibits meetings or interviews with persons wanted by judicial authorities. According to local human rights organizations and HRW, the Communications and Media Commission threatened to revoke broadcasting licenses for noncompliance.

These restrictions extended to privately owned Iraqi television stations operating outside of the country. According to press reports, Egyptian authorities shut the offices of Al-Rafidayn and Al-Baghdadiya for critical coverage of the government following ISIL's June 10 takeover of Mosul. A Communications and Media Commission statement accused the two television channels of "sectarian incitement and threatening civil peace."

All books published in the country as well as imported books required the Ministry of Culture's approval and were therefore subject to censorship. According to the ministry, the purpose of the vetting was to suppress literature that promotes sectarianism.

Libel Laws/National Security: The law prohibits reporters from publishing stories that defame public officials. Many in the media complained this provision prevented them from freely practicing their profession by creating a strong fear of prosecution, although widespread self-censorship impeded journalistic performance as well.

Libel is a criminal offense under Kurdistan regional government law as well, and judges may issue arrest warrants for journalists on this basis. Police typically detained journalists named in a lawsuit until they posted bail.

Nongovernmental Impact: Criminal and terrorist groups sought to inhibit freedom of expression, including through threats and attacks directed at members of the press, and intimidation of their family members. Journalists were harassed,

kidnapped for ransom, or killed in deliberate attacks for reporting information critical of ISIL. The NGO Committee to Protect Journalists called ISIL “one of the most dangerous forces for the press” in areas under its control. In addition to harassment and violence against journalists, ISIL also sought to control the media in areas under its control. For example, in Mosul, according to press reports, ISIL took over production of several media stations and censored the content.

Internet Freedom

There were overt government restrictions on access to the internet, and there were credible reports, but no official acknowledgement, that the government monitored e-mail and internet chat rooms without appropriate legal authority.

Due to the deterioration in the security situation and the use of social media platforms by ISIL to inflame sectarian tensions, incite violence, and issue threats, the government interfered with internet access in some areas of the country. Reporters Without Borders alleged that on June 13, the country’s telecom companies, at the request of the Ministry of Communications, suspended internet service in Kirkuk, Mosul, and other areas. The state-owned Telecommunications and Post Company and private internet service providers also blocked access to some social media platforms, including Facebook, Twitter, Skype, and YouTube. The Ministry of Communications reportedly lifted the ban on June 30, but HRW asserted that residents in Tikrit and Mosul remained without internet access beyond that date. On June 19, the Communications and Media Commission announced that authorities decided to block social media sites due to the security threat posed by ISIL.

ISIL also engineered communications and internet blackouts. For example, on July 4, the self-proclaimed leader of ISIL, Abu Bakr al-Baghdadi, appeared in Mosul to deliver the first Friday prayer service of Ramadan. During his appearance ISIL restricted internet and cell phone service in the city. In late November residents of Mosul told the Associated Press that ISIL blocked all cell phone networks in the city. ISIL announced the decision to block cellular networks on November 26, using its Mosul-based radio network. Some residents continued to be able to access the internet, which operated on a different network.

Despite restrictions, political figures and activists used the internet to criticize corrupt and ineffective politicians, mobilize protesters for demonstrations, and campaign for candidates through social media channels. In one instance, in 2013 activists helped defeat the passage of a cybercrimes law that the Council of

Representatives sent back to the prime minister's advisory commission for revisions to reduce its steep penalties, which included life imprisonment, for harming the reputation or affecting the unity of the country, and to clarify the punishable offenses.

According to the World Bank, approximately 9.2 percent of the population used the internet during the year, compared with 7.1 percent in 2013. Other observers estimated that internet penetration was approximately 10 percent, a significant increase since 2010. Social media and mobile applications became more widespread, particularly among youth.

Academic Freedom and Cultural Events

Social, religious, and political pressures significantly restricted the exercise of freedom of choice in academic and cultural matters. In all regions various groups reportedly sought to control the pursuit of formal education and granting of academic positions. The country's universities did not pursue gender-segregation policies. ISIL limited female education beyond the primary level in areas that it controlled, according to an August 7 statement by UNESCO.

Academic freedoms were increasingly restricted in areas of active conflict and in ISIL-controlled territory. For example, in its August 7 statement UNESCO's representative to Iraq reported violations of academic freedoms at the universities of Mosul, Tikrit, Anbar, and Diyala. According to the United Nations, universities altered their programs of study in law, theology, natural sciences, education, and fine arts to comply with ISIL's ideology. The local press reported ISIL shuttered the University of Mosul's departments of law, political science, and fine arts for violations of Islamic law and ordered the strict segregation of genders for both faculty and students.

ISIL also targeted academic institutions in violent attacks and abducted students and faculty. For example, on June 7, ISIL forces stormed the University of Anbar, taking as many as 1,000 students hostage. Iraqi forces freed the students several hours later, according to press reports.

Religious extremists and armed groups limited cultural expression by targeting artists, poets, writers, and musicians. For example, the local press reported that ISIL issued a directive banning all stores in Mosul from selling movies or music CDs and instructed businesses to stock only CDs containing Quranic verses or religious programs.

Following ISIL's assault on Mosul on June 10, the extremist group intentionally destroyed Sunni and Shia shrines, Christian monasteries and churches, and other places of cultural or religious significance throughout the country (see section 1.g.).

In the Kurdish region, local NGOs stated that government actions made student access to higher education increasingly merit-based. On the other hand, senior professorships continued to be easier to obtain for those with links to the traditional KDP and PUK ruling parties.

b. Freedom of Peaceful Assembly and Association

Freedom of Assembly

The constitution provides for freedom of assembly and peaceful demonstration "regulated by law." Regulations require protest organizers to seek permission seven days in advance of a demonstration and submit detailed information about the applicants, the protest, and participants. The regulations prohibit all "slogans, signs, printed materials, or drawings" involving "sectarianism, racism, or segregation" of citizens. The regulations also prohibit anything that would violate the constitution or law; encourage violence, hatred, or killing; or prove insulting to Islam, "honor, morals, religion, holy groups, or Iraqi entities in general." Provincial councils traditionally maintained authority to issue permits. Authorities generally issued permits in accordance with the regulations. In addition a limited number of peaceful protests occurred without permits.

Protesters demonstrated in several major cities demanding better government services and an end to corruption. For example, the press reported on demonstrations staged in seven provinces on March 8 to protest privileges granted to parliamentary members and senior officials, particularly related to pensions. On May 31, residents from Qadisiyah demonstrated against the lack of government services and deteriorating living conditions. On September 2, family members of the approximately 1,700 soldiers and cadets killed after capture at Camp Speicher demonstrated, including inside the Council of Representatives building, demanding an investigation into the June attack by ISIL forces on the camp.

The majority of protests were peaceful, and the government provided appropriate security. There were limited reports that the government dismissed unauthorized protests or restricted protests for security reasons during sensitive periods. Unlike

in 2013 when on numerous occasions the government suppressed demonstrations, arrested organizers, used excessive force against protesters, and harassed protesters attempting to reach demonstration sites, protests were generally permitted and were peaceful. No update was available on the status of an investigation into the 44 demonstrators killed in 2013 during demonstrations in Hawija.

There were limited reports of violence or official interference in protests in the IKR. For example, the head of the Iraqi Kurdistan Parliament's Human Rights Committee reported that in July police beat demonstrators in Makhmour with batons and detained those who were demanding more municipal services. After August 3, Yezidis displaced from Mount Sinjar to the IKR by ISIL staged demonstrations to call for increased humanitarian assistance. According to unconfirmed claims by some Yezidi activists, Kurdish security forces used force to stop some of these demonstrations.

Freedom of Association

The constitution provides for the right to form and join associations and political parties. The government generally respected this right, except for the legal prohibitions on groups expressing support for the Baath Party or Zionist principles.

Many Sunni Muslims alleged that the country's Shia majority waged a continuing campaign of revenge identifying Sunnis with the Baath Party's abuses against Shia under Saddam Hussein's rule. Complaints included allegations of discrimination in public sector employment due to the continuing campaign of de-Baathification. The government claimed that it intended the de-Baathification process to target loyalists of the former regime, but some Sunnis and NGOs believed the government implemented the Accountability and Justice Law (de-Baathification law) selectively to render many Sunnis ineligible for government employment.

Bureaucratic delays continued in the NGO registration process. The slow process impeded development and legal protection of NGOs. A 2010 law designed to facilitate NGO registration and operations and provide extra protection from onerous and arbitrary government actions provided limited assistance. The NGO Directorate in the Council of Ministers Secretariat issued registration certificates to 217 NGOs from January to September, compared with 578 in calendar year 2013. According to the NGO Directorate, it licensed more than 2,000 NGOs countrywide between January 2011 and September 2014.

The law stipulates that any person who promotes Zionist principles, associates with Zionist organizations, assists such organizations by giving material or moral support, or works in any way towards the realization of Zionist objectives is subject to punishment by death. There were no applications of this law since the fall of the Saddam Hussein regime.

c. Freedom of Religion

See the Department of State's *International Religious Freedom Report* at www.state.gov/religiousfreedomreport/.

d. Freedom of Movement, Internally Displaced Persons, Protection of Refugees, and Stateless Persons

The constitution provides for freedom of internal movement and foreign travel, and the government generally respected these rights. Kurdistan regional government authorities allowed more than 800,000 internally displaced persons (IDPs) to reside in the IKR, but at times they limited the ability of some, particularly Sunni Arabs, to enter the region.

The government generally cooperated with the Office of the UN High Commissioner for Refugees (UNHCR), the International Organization for Migration (IOM), and other humanitarian organizations to provide protection and assistance to IDPs, refugees, returning refugees, asylum seekers, stateless persons, and other persons of concern. The government did not fully establish effective systems to assist these individuals by year's end. The deterioration in the security situation and armed clashes between the ISF and ISIL throughout the year caused significant movement of civilians, further complicating the government's coordination and relief efforts. The United Nations estimated that from January to November, the conflict displaced more than two million persons in addition to the nearly one million IDPs from previous upheavals. Security considerations in active combat areas, destruction of roads, and official restrictions in some cases limited humanitarian access to IDP communities.

In-country Movement: The law permits security forces to restrict in-country movement pursuant to a warrant, impose a curfew, cordon off and search an area, and take other necessary security and military measures in response to security threats and attacks. There were numerous reports that security forces in the disputed areas, including Peshmerga and Iraqi Army forces, selectively enforced regulations requiring residency permits in order to limit entry of persons into the

areas under their control. The Kurdistan regional government, imposing what it claimed were necessary security procedures, restricted movement across the areas it administered. Nonresidents of the IKR were required to obtain permits that authorized limited stays in the IKR. These permits were generally renewable. Iraqi citizens not from the IKR who sought to obtain residency permits for areas controlled by the Kurdistan regional government required sponsorship from a resident in the region. Citizens (of any ethnicity, including Kurds) crossing into the region from the south were obligated to enter at checkpoints and undergo personal and vehicle inspection.

Due to the surge in IDPs seeking refuge in the IKR and to security concerns about ISIL forces entering territory under the control of the Kurdistan regional government, Kurdish authorities did not apply restrictions consistently across the region. The United Nations and international humanitarian organizations alleged that practices regarding the entry of IDPs were more or less restrictive depending upon the location of the checkpoint and the background of the displaced individuals. There were also reports that checkpoints into the IKR were sometimes closed, forcing IDPs to wait for extended periods to enter the region. Officials prevented individuals whom they deemed security threats from entering the region. IKR officials generally admitted minority IDPs into the IKR, although the security checks were occasionally lengthy, and entry was more difficult for men, particularly Arab men, traveling without family than for others.

Due to increased violence, central government security forces increased the number of checkpoints and erected makeshift roadblocks in many parts of the country (see section 1.g.). For example, UNAMI reported that the government, as well as Shia militias, established illegal checkpoints in several districts in Baghdad after June 15, including Karrada, Hurriya, and central Baghdad. In addition authorities imposed curfews on cities to restrict movement.

ISIL restricted freedom of movement, particularly in the west and north (see section 1.g.). For example, ISIL forces surrounded the city of Amerli for more than two months, preventing entry and exit by the city's largely Turkmen Shia population. In early August, ISIL surrounded Mount Sinjar, initially preventing tens of thousands of Yezidis from departing the area to safety. ISIL severely restricted women's freedom of movement in areas under its control. Religious patrols reportedly checked to make sure that women wore suitable attire and male relatives or guardians accompanied them outside the home.

Foreign Travel: The government required exit permits for citizens leaving the country, but the requirement was not routinely enforced.

Exile: The constitution permits forced exile only of naturalized citizens and only if a judicial decision establishes that the citizenship was initially obtained based on material falsifications. There were no reported cases of forced exile.

Internally Displaced Persons (IDPs)

During the year instability and armed conflict displaced more than two million persons, predominantly in the north, central, and western areas. The central government, the IKR, and international organizations provided protection and assistance to IDPs. The majority of the displaced fled to areas outside of their districts of origin. The United Nations estimated that the IKR hosted more than 900,000 of the country's 2.1 million IDPs. Sectarian violence and the advance of ISIL across the north and west displaced members of all ethnic and religious communities, including Shia, Sunni, Christian, Yezidi, Turkmen, and Sabeen-Mandaeen families. Many displaced persons suffered secondary and tertiary displacement, some within weeks or months of earlier displacement. Many IDPs lived in rented accommodations, with host families, or in collective centers, while others took refuge on public land or in public buildings, including schools, churches, and mosques. As of November 7, according to the United Nations, 516,000 IDPs throughout the country urgently needed adequate shelter. The Kurdistan regional government worked with the United Nations to construct 21 new camps in the IKR with a combined holding capacity of more than 226,000 individuals. Existing infrastructure was expanded to address some of these needs. The government and the United Nations gave priority to shelter for persons living in open-air areas, schools, and unfinished buildings. IDPs faced harsh living conditions, with limited access to utilities, adequate sanitation, education, and employment opportunities. Displaced families were frequently subjected to multiple displacements.

In addition to massive displacements since January, authorities registered an estimated 950,000 IDPs who were displaced due to sectarian conflict in 2006-08.

Ethnic and religious minorities remained vulnerable to displacement. ISIL fighters forced many of these communities to abandon their homes in the north (see section 1.g.). ISIL advances toward the IKR in early August further displaced ethnic and religious minorities, particularly Yezidis, who were displaced from Sinjar to Dahuk, to the IKR and Turkey via Syria, or into the Sinjar mountain area.

Official efforts to promote the safe, voluntary return or local integration of IDPs were strained by the government's focus on improving the security situation and addressing the immediate humanitarian needs of those displaced due to violence. The constitution and the national policy on displacement address IDPs' rights, but few laws specifically do so. The Migration and Displacement Ministry's comprehensive strategy recognized local integration as a legal option for IDPs. The government attempted to integrate IDPs into local populations but also continued to encourage families to return to their original homes.

Government assistance focused on the provision of one-time initial financial grants. Faced with the large movement of IDPs across the country, the government provided food, water, and financial assistance to IDPs, including in the IKR. Following an escalation of the conflict in Anbar, the government provided 10 billion dinars (\$8.5 million) to aid displaced families. The government announced two additional grants of 500 billion dinars (\$430 million) each in June and August, which included cash payments of one million dinars (\$855) to each displaced family. On September 8, the Council of Ministers announced the government would pay displaced families a cash equivalent of the food rations they did not receive due to displacement. At year's end it was not clear when compensation would begin or whether it would be a one-time or monthly payment. In August the Kurdish cabinet announced a fund of 29 billion dinars (\$25 million) for IDPs. The media reported that 30,000 families received this financial assistance by August. The Migration and Displacement Ministry generally allowed IDPs access to domestic and international humanitarian organizations, collected information about IDPs, and provided some protection and assistance in the form of humanitarian supplies.

In August, UN agencies and international NGOs launched massive airlifts of aid into the IKR, consisting mainly of food, water, tents, mattresses, blankets, and other household items in an effort to provide immediate life-saving assistance to displaced persons. While humanitarian assistance could reach displaced persons in the IKR, access to those remaining in ISIL-controlled areas, particularly in Ninewa and Anbar, remained constrained. Humanitarian personnel continued to attempt to provide assistance in these areas, but the assistance provided was insufficient and sporadic due to security and movement constraints.

An IDP's habitual place of residence determined his or her access to services, including food rations allocated through the public distribution system that accounted for 30 percent of calorie consumption in the country and more than half

of the calories consumed by the poor. IDPs who did not register as IDPs in their current places of residence also had limited access to services, such as schools, and to food rations from the public distribution system. Local authorities often determined whether IDPs would have access to local services. Through the provision of legal aid, the UNHCR assisted IDPs in obtaining documentation and registering with authorities to improve their access to services and entitlements. The IOM reported that some IDPs faced difficulty with registration due to lack of required documentation and administrative delays.

On August 14, the United Nations designated the humanitarian crisis a level three (L3) emergency, its highest level, citing the scale and complexity of the situation. On November 14, the continuing needs created by the crisis led to an extension of the L3 designation through May 2015. Host communities, particularly in the IKR, faced acute pressure on their ability to provide public services to increasing numbers of IDPs.

As of November, according to the UN Office for the Coordination of Humanitarian Affairs, there were approximately 900,000 IDPs in the IKR, as well as tens of thousands of others in the disputed areas under the control of the Kurdistan regional government.

Protection of Refugees

Access to Asylum: The law provides for the granting of asylum or refugee status, and the government established a system, albeit flawed, for providing protection to refugees. According to the UNHCR, more than 260,000 individuals sought refuge or asylum in the country, with most asylum seekers arriving from Syria and smaller numbers from Iran and Turkey. The government generally cooperated with the UNHCR and other humanitarian organizations to provide protection and assistance to the more than 2.3 million refugees, IDPs, asylum seekers, and stateless residents in the country. An estimated 208,000 of the 216,465 Syrian refugees who by August had registered, or were awaiting registration, with the UNHCR were Syrian Kurds who found shelter in the IKR. The UNHCR reported that approximately 17,000 refugees returned to Syria from the IKR from January through July. Two-thirds of these returnees were adult men, and some may have intended to return to the IKR.

Many Iraqi refugees who had earlier fled to Syria returned home because of continuing violence in Syria. Often these returnees could not go back to their places of origin due to conflict within the country, resulting in secondary

displacement. An estimated 60,000 citizens returned to the country as of January. The Ministry of Migration and Displacement registered 7,111 returnee households (approximately 35,000 individuals) by September 2013. The ministry provided one-time financial grants of four million dinars (\$3,420) each to the registered returnees through smart cards.

The UNHCR reported that 28,300 Iraqi refugees were registered and receiving its assistance in Syria as of August; the Syrian government consistently reported a higher estimate of 149,292. The closure of the al-Qaim and Rabiah border crossings, continuous security incidents, and a lack of safety along the Anbar-to-Baghdad highway, which most returnees traveled, limited the number of cross-border movements.

In the first half of 2013, 1,135 refugees returned to the country under a voluntary repatriation program, mainly from Syria, Iran, Jordan, and Egypt.

Refoulement: The government cooperated with the UNHCR to prevent the deportation of refugees. The UNHCR relocated refugees at risk of deportation to refugee camps or attempted to resettle them. Unlike in 2013 the UNHCR did not document any cases of refoulement in the year, although international NGOs reported that the government forced some Iranian asylum seekers to repatriate, despite credible risk of their torture upon their return.

The al-Qaim border crossing in Anbar Province generally remained closed to Syrian refugees and asylum seekers and was under the control of ISIL forces for much of the year. Shelling and aerial bombardments at the border near al-Qaim and in the city deterred movement of non-ISIL vehicles and individuals.

After authorities reopened border crossings from Syria to the IKR in August 2013, the number of refugees rapidly increased, according to the UNHCR. The Syrian refugee population in the IKR more than doubled between February 2013 and April 2014, according to UN estimates. As of July approximately 96 percent of the Syrian refugees who entered Iraq resided in the IKR. On April 10, the IKR reclosed the Fishkabour (Peshkhabour) border to new arrivals from Syria, but beginning on June 10, it allowed the border crossing to process Syrians returning to Syria. By the end of November, the UNHCR recorded a total of 228,484 Syrian refugees in the country, a slight decrease from 2013.

Refugee Abuse: There were reports that sectarian groups, extremists, criminals, and, in some alleged but unverified cases, government forces attacked and arrested

refugees, including Palestinians, Ahwazis, and Syrian Arabs. As the country's security situation deteriorated, refugees in all areas of the country were at increasing risk.

Local NGOs reported that abuse of Syrian refugees--often by other refugees--was common, including violence against women and children, child marriage, forced prostitution, and sexual harassment. For example, on January 8, six men gang-raped a young Syrian refugee near Erbil. Kurdish authorities arrested the men the following day.

The UNHCR lacked access to ISIL-controlled areas where the al-Qaim refugee camp in Anbar Province was located and could not verify population figures or the humanitarian needs of the remaining refugees. Due to aerial bombardments and shelling near al-Qaim, many of the refugees who settled outside the camp moved to more secure locations away from the border area. According to UN estimates, approximately 6,775 residents of al-Qaim returned to Syria as of June 15. The UNHCR reported approximately a 50-percent decline in the number of Syrian refugees residing in Anbar Province due to continued instability.

A 2011 memorandum of understanding between the government and the United Nations provided for the closure of Camp Ashraf in Diyala Province and transfer to Camp Hurriya of members of the Mujahedin-e-Khalq, an Iranian dissident group. As of December 31, the United Nations reported a population of 2,517 persons in Camp Hurriya. A total of 632 residents of Camp Hurriya were relocated to foreign countries, either independently (30 individuals) or through the UNHCR relocation program (602 individuals). The majority of relocations were to Albania.

Unlike in 2013, there were no reports of attacks on Camp Hurriya by Iranian-backed militants or other groups. There continued to be no information on the whereabouts of seven Mujahedin-e-Khalq members who were abducted from Camp Ashraf in September 2013.

Dozens of former Mujahedin-e-Khalq members who had disassociated themselves from the organization testified in protection interviews and in separate conversations with UN human rights monitors that they faced considerable pressure from their leaders not to cooperate with the UNHCR.

Employment: By law refugees and asylum seekers have the right to work in the private sector. Palestinian refugees, of whom UNHCR estimates there were 12,000, faced job insecurity when working in the public sector due to their

ambiguous legal status; the government did not recognize their refugee status and did not allow them to obtain citizenship. In the IKR authorities issued six-month residence and work permits to Kurdish Syrian refugees, and many Syrian Kurds found work in the construction and services industries. Syrian refugees were able to obtain and renew residency and work permits both in refugee camps and in Erbil.

Durable Solutions: Syrian, Turkish, and Iranian Kurdish refugees in the IKR generally integrated well. Local integration remained the best and most likely option for the majority of Iranian Kurds. The Kurdistan regional government classified an estimated 40,000 Syrian Kurd refugees as “noncamp refugees.” Many noncamp refugees worked in Erbil or found shelter with relatives in the IKR. The scale of the accelerating influx of Syrian refugees and Iraqi IDPs placed considerable strain on administration, infrastructure, and provision of services in the IKR.

Stateless Persons

The UNHCR estimated that 5 percent of Syrian refugees in the IKR--approximately 1,040--were stateless. Palestinian refugees, residing mostly in Baghdad, remained longtime stateless residents. The UNHCR estimated that an additional 110,000 stateless persons lived in the country. Many of these nonrefugee stateless individuals were previously citizens and had already begun the process of reacquiring Iraqi nationality. UNAMI estimated that the actual figure was likely to be lower than the official estimate. Since 2003 more than 25,000 persons regained their nationality, some in accordance with nationality law.

The Ministry of Migration and Displacement reported in 2013 that 97 percent of Faily Kurds had re-acquired their citizenship, although community leaders disputed this statement. Those who had not re-acquired their citizenship reported the difficulty was the result of insufficient paperwork confirming their Iraqi identity due to either destruction, loss, or their status as children at the time of their initial departure from the country. As of 2006, the latest year for which data were available, an estimated 54,500 Bidoun individuals living as nomads in the desert near or in the southern provinces of Basrah, Dhi Qar, and Qadisiyah remained undocumented and stateless. Other communities similarly at risk of statelessness included the country’s Romani population, the Bahai religious minority community, inhabitants of the southern Marshlands, members of the Goyan and Omariya Turkish Kurdish tribes near Mosul, and nationals of newly independent South Sudan, which had not established a diplomatic presence in the country.

Stateless persons faced discrimination in employment and access to education. Many stateless persons, particularly Bahai, were not able to register for identity cards, which prevented them from enrolling in public school, registering marriages, and gaining access to some government services. Stateless persons also faced difficulty obtaining public sector employment and lacked job security.

Section 3. Respect for Political Rights: The Right of Citizens to Change Their Government

The constitution provides citizens the ability to change their government through free and fair elections and, despite violence and other irregularities in the conduct of elections, citizens generally exercised this right through periodic elections based on universal suffrage and free from widespread or systemic fraud.

Elections and Political Participation

The previous legislature, elected in 2010, comprised 325 seats, including eight reserved for minority groups and seven national compensatory seats allotted to the winning lists according to the proportion of votes received in the elections. The 2013 Election Law abolished the seven national compensatory seats following a Federal Supreme Court ruling in November 2013 declaring this process unconstitutional. In place of the compensatory seats, the provinces of Anbar, Baghdad, Basrah, Babil, Dahuk, Dhi Qar, Diyala, Erbil, Karbala, and Sulaymaniyah each gained one seat. With the minority seats unchanged, the total number of seats contested in the elections for the Council of Representatives increased from 325 to 328.

Recent Elections: On April 30, eligible voters took part in the third nationwide parliamentary elections since 2003. The Independent High Electoral Commission (IHEC) certified 277 political entities and 36 coalitions to participate in the elections. Following a review of the 9,453 candidates submitted by IHEC to the Accountability and Justice Commission, IHEC approved 9,040 candidates, including 2,612 women, to run in the elections. IHEC reported voter participation at 62 percent with approximately 14 million persons casting their vote from a pool of 22 million eligible voters. There was variance across regions, with a high participation average of 77 percent in predominantly Kurdish areas and a lower average of 57 percent in predominantly Sunni or mixed Sunni/Shia provinces. Due to increased violence and security concerns in the predominantly Sunni province of Anbar, for example, HRW reported a voter turnout of less than 30 percent. Voting

took place at 8,083 polling centers in 18 provinces. IHEC issued a decision to allow IDPs to vote conditionally in recognition of the scale of displacement in Anbar. For example, IHEC opened 97 polling centers in the IKR for special voting, serving approximately 23,948 IDPs as absentee voters.

Shia parties won more than 170 seats. Former prime minister Maliki's State of Law coalition won 93 seats, the Sadrist blocs won 34 seats, and the Citizens' Coalition won 31. Among Sunni parties the Muthaidoun bloc won 28 seats, the Wataniya list won 21, and the Arabiya list followed with 10. Kurdish parties won a total of 62 seats, including 25 seats for the KDP and 21 seats for the PUK.

Threats of violence and deadly attacks disrupted the political process. Prior to the election, ISIL and unknown groups targeted political rallies and harassed IHEC employees. For example, on April 25, multiple vehicles rigged with explosives detonated at an election rally in Baghdad, killing more than 30 civilians and injuring at least 80 others. The media reported an unconfirmed number of IHEC staff in Salah ad Din resigned following threats from unidentified armed groups ordering them to quit or be killed.

Security services established additional checkpoints and protective units to guard polling centers. Nevertheless, multiple mortar and other attacks on polling stations across the country prevented some individuals from voting and killed at least 22 persons, including two IHEC members. The local media reported a number of security incidents on election day, and polling stations in Anbar, Baghdad, Diyala, Kirkuk, Ninewa, and Salah ad Din provinces were targets. For example, a suicide bomb exploded at a polling center in Tikrit, killing four persons and injuring 18; multiple improvised explosive devices detonated near a polling station west of Ramadi, killing two members of the security forces; and an explosive charge went off near a polling center in Al-Dibs District, killing two women. ISIL took responsibility for the election rally bombing in Baghdad and at least eight attacks on polling centers on April 28, when army and other security officers cast their ballots in pre-election early voting. Unknown groups also targeted schools used as polling stations.

International and local observers, including UNAMI, the EU, the Arab League, and the Council of Representatives' Independent High Commission for Human Rights monitored the elections. Despite security concerns IHEC and the EU election monitoring team declared the elections credible and free from widespread or systemic fraud. There were limited reports of abuse or electoral irregularities. For example, IHEC reportedly annulled the results from 300 polling stations for

violations and dismissed more than 1,000 electoral workers, according to local media sources; the individuals investigated were barred from future IHEC employment, but no further information was released on the investigations. IHEC announced preliminary election results on May 19, and the Federal Supreme Court certified the results on June 16, following a review of official complaints and appeals. The Council of Representatives elected Saleem al-Jabouri as its new speaker on July 15 and Kurdish politician Fuad Masum as president on July 24. On August 11, following the National Alliance's nomination of Haider al-Abadi, President Masum charged him with forming the next government as prime minister-designate. On September 8, the new government was formed. On October 18, parliament approved Prime Minister al-Abadi's nominees as the ministers of interior, defense, and several others, marking the conclusion of the government formation process and filling the top posts for the two security ministries for the first time since 2010.

On April 30, IHEC conducted elections for both the Iraqi Council of Representatives and the provincial councils of Erbil, Dahuk, and Sulaymaniyah. IHEC accredited 24 political entities and one coalition to run in the provincial elections. Of the 718 candidates nominated, 224 (31 percent) were women.

In September 2013 IHEC conducted elections for 111 seats in the Iraqi Kurdistan Parliament (IKP).

IHEC announced 28 complaints filed in connection with the Sulaymaniyah elections. Some politicians and NGO observers claimed that IHEC did not delete the names of up to 178,000 deceased individuals from voter rolls, and voting records showed votes registered under some of these names. There were allegations that staff at the additional vote counting centers IHEC created in the IKR before the September 2013 IKP elections fraudulently modified tally results from polling stations in favor of certain political parties. One NGO alleged that after complaining about procedures at these counting centers following the September 2013 elections, IHEC did not permit it to monitor the April elections. In July the IKP passed legislation to establish a new Independent High Electoral Commission for the Kurdistan region, separate from the national IHEC.

Political Parties and Political Participation: Political parties and coalition blocs tended to organize along either religious or ethnic lines. Membership in some political parties conferred special privileges and advantages in employment and education.

Participation of Women and Minorities: The constitution mandates that women constitute at least 25 percent of parliamentary and provincial council membership. In the 2014 national parliamentary elections, 22 women received sufficient votes to win seats in the 328-seat Council of Representatives without having to rely on the constitutional quota, compared with five in 2010. More than 60 additional women, who received fewer votes, were awarded seats based on the quota, bringing the total number of seats held by women to 86. Despite an increase in the number of female parliamentarians, female members of parliament were often marginalized in political discussions and were not selected to head influential ministries or Council of Representatives committees. Prime Minister al-Abadi named two women to his Council of Ministers as ministers of health and of state for women's affairs.

Of the 328 seats in parliament, the law reserves eight seats for minorities: five for Christian candidates from Baghdad, Ninewa, Kirkuk, Erbil, and Dahuk; one Yezidi; one Sabeen-Mandaean; and one Shabak. The law allocates nine provincial council seats to minority groups. Two cabinet members, a Turkmen and a Christian, were from the country's minority communities.

Section 4. Corruption and Lack of Transparency in Government

The law provides criminal penalties for official corruption, but the government did not implement the law effectively. Officials in all parts of the government often engaged in corrupt practices with impunity, and investigation of corruption was not free from political influence. Family, tribal, and religious considerations significantly influenced government decisions at all levels. Bribery, money laundering, nepotism, and misappropriation of public funds were common.

According to the 2014 report of the Commission of Integrity (COI), two former ministers and a former director general were in detention on charges of corruption. Seven officials with the rank of minister, two candidates for election to the Council of Representatives in 2010, and 244 directors general were also referred to courts for trial on corruption charges. The COI generally refrained from releasing the names of government officials. International observers alleged the COI intended the cases described in its annual reports for 2013 and the first half of 2014 to increase public awareness rather than eradicate corruption within the government.

Corruption: The COI, formerly the Public Integrity Committee, reported the level of bribery dropped with respect to junior government employees but rose for senior employees. There were reports alleging that senior officials involved in bribery schemes held illicit funds in overseas accounts, making bribery more difficult to

detect. The COI noted bribery and corruption were most widespread in the Ministry of Interior, followed by the Ministries of Defense, Oil, and Electricity. For example, the deputy director of the Interior Ministry's Prisons Rehabilitation Directorate, who fled the country in 2012 after having allegedly embezzled nine billion dinars (\$7.7 million), remained on the COI's extradition list.

The COI received 963 allegations of corruption, including 633 complaints via mail, e-mail, and official letters. During the first half of the year, the COI investigated 15,897 cases and referred 70 percent of them to relevant courts. It reported issuing 875 subpoenas and arrest warrants, including 12 to officials at the ministerial level and 30 at the director general level.

Several government agencies are responsible for combating corruption and financial crimes. The COI is responsible for preventing and investigating official corruption nationwide (except in the IKR, where the Commission for Public Integrity has this responsibility). The COI refers cases of corruption involving public officials to the judiciary. The Federal Board of Supreme Audit serves as the auditing agency for private institutions and all government agencies except cabinet ministries. The board is responsible for oversight of contracts in the extractive industries and forwards all corruption findings to the judiciary. The inspectors general (IGs), under the jurisdiction of the prime minister's Office of Regulatory Affairs, inspect and report on corruption cases in all of the cabinet ministries and in seven commissions--government press and media, property claims, political prisoners, national intelligence, Hajj and Omrah, the Sunni endowment, and the Shia endowment--providing internal but independent oversight. The IGs may render administrative decisions and refer cases to the COI.

The Central Bank's Money Laundering Reporting Office (MLRO) leads the government's efforts to combat money laundering and terrorist financing. The MLRO is responsible for monitoring financial transactions and compiling information on money laundering and disseminating it to law enforcement agencies. Due to a lack of political support, the MLRO was largely ineffective. It lacked the human capacity and technical resources to monitor the financial sector effectively. Moreover, international organizations criticized its lack of independence--and vulnerability to politicization--because it remained under the control of the Central Bank.

The Council of Ministers Secretariat also has an anticorruption advisor, and the Council of Representatives has an Integrity Committee. The Joint Anticorruption Council reporting to the Council of Ministers oversees and monitors compliance

with the government's 2010-14 anticorruption strategy. The government did not issue a new anticorruption strategy during the year. The secretary general for the Council of Ministers led the anticorruption council, which also included the chairman of the Federal Board of Supreme Audit, the commissioner of the COI, and representatives of the IGs' offices. When the agenda of the anticorruption council calls for high-level participation by the government, the Ministry of Interior's head of economic crimes may attend. Despite the council's mandate, the public generally regarded it as having little impact due to the scale of official corruption.

Lack of agreement about institutional roles, insufficient political will, political influence, poor transparency, and unclear governing legislation and regulatory processes exacerbated a lack of organizational accountability among anticorruption institutions and hampered joint efforts to combat corruption. Although anticorruption institutions increasingly collaborated with civil society groups, organizing workshops, surveys, and training courses, the impact of expanded cooperation was limited. The media and NGOs continued to attempt to expose corruption independently, although their capacity to do so was limited. Anticorruption, law enforcement, and judicial officials, as well as members of civil society and the media, faced threats and intimidation in their efforts to combat corrupt practices (see section 2.a.).

Government officials and the IGs frequently contended that corruption investigations were highly politicized. Human rights NGOs alleged that government officials sought to influence the outcome of corruption investigations or to stifle anticorruption efforts altogether. For example, on March 13, the central criminal court sentenced the former COI chair, Judge Rahim Ugaili, to four years in prison for breach of official duties. According to media reports, the former commissioner faced 22 lawsuits, of which the court convicted him in five and acquitted him in two. Judicial proceedings continued for the other charges. Prior to his 2011 resignation, Ugaili had launched investigations of high-ranking officials and parliamentarians, and local NGOs alleged that charges against him were retribution for those investigations.

As in previous years, ministries effectively stalled investigations by failing to comply with requests for information or for officials to appear in court. The IGs claimed some ministers stifled their oversight efforts or openly threatened IG staff with dismissal for performing basic oversight functions. Some government officials stated politically motivated corruption investigations hindered public

administration because officials reportedly feared corruption allegations from political opponents.

The law requires the prime minister's approval before a corruption case may proceed against members of the presidency or the Council of Ministers; there was no information regarding specific instances of the prime minister or other ministers withholding approval during the year. The constitution provides members of the Council of Representatives immunity from prosecution, which the council may lift by a majority vote.

The IGs and other anticorruption officials lacked sufficient resources, especially adequate personal security. High turnover among the IGs left positions unfilled for long periods. The IGs reported that these deficiencies were key factors in determining whether to report instances of corruption. The executive branch's failure to seek legislative confirmation of the appointment of key anticorruption officials further weakened the independence of the Federal Board of Supreme Audit, COI, Central Bank, and IGs by leaving many officials in an "acting" capacity, subject to removal by the prime minister at any time.

In an anticorruption drive launched in October, Prime Minister al-Abadi sacked dozens of military commanders in the Ministries of Defense and Interior for failure to perform their duties. The prime minister also announced the discovery of 50,000 "ghost soldiers," employees on the payroll of the Ministry of Defense who did not exist or show up to work but continued to get paid. Al-Abadi made a commitment to reconstitute the security ministries and root out the corruption that enabled ISIL to rise.

Widespread and pervasive corruption and lack of government transparency were major problems as well in the IKR. According to the Kurdistan Commission on Public Integrity, corruption in the IKR was extensive. Weak budgetary oversight and lack of training for personnel further hindered the commission from fighting corruption effectively. Elements of the IKR were connected to the purchase of ISIL-produced oil. While officials tried to root out those purchasing or transporting such oil, the trade continued to flourish and remained one of the primary resources funding ISIL.

Financial Disclosure: The law authorizes the COI to obtain annual financial disclosures from senior public officials, including ministers, governors, and parliamentarians, and to take legal action for nondisclosure. Penalties range from fines to imprisonment. A unified system for enforcing annual financial disclosures

did not exist. The COI has no jurisdiction over the IKR, but Kurdish members of the central government were required to conform to the law. The law obligates the COI to provide public annual reports on prosecutions, transparency, accountability, and ethics of public service. The COI's annual report on financial disclosures indicated that by August a majority of government officials had filed financial disclosure reports.

The Kurdistan Commission on Public Integrity is responsible for distributing and collecting financial disclosure forms in the IKR. The commission reported that by August the Kurdistan region's president, all members of its parliament, and 13 of its 23 ministers had submitted financial disclosure. There was no information available indicating that public officials faced penalty for financial nondisclosure.

Public Access to Information: The law does not provide public access to government information. The 2013 IKR Information Law expands citizens' rights to request information from the regional government, parliament, and court system, except in cases of national security or classified information. According to the Kurdistan region's Human Rights Commission, the government did not implement this law.

Section 5. Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

Domestic and international NGOs operated in most cases with little or no government interference. Due to the humanitarian crisis in western and northern areas of the country, many local NGOs shifted their focus to providing assistance to IDPs and other communities affected by the conflict. In some instances these local NGOs worked in coordination with central government and Kurdistan regional government authorities. For example, the United Nations reported in September that nearly half of the organizations providing humanitarian support to IDPs were domestic NGOs. A number of NGOs also investigated and published findings on human rights cases. When NGOs alleged human rights abuses that concerned government actions or actions of ethnic or religious groups allied with the government, there were some reports of government interference.

NGOs faced capacity-related challenges, did not have regular access to government officials, and did not systematically serve as bulwarks against failures in governance and human rights abuses. While the law forbids NGOs from engaging in political activity, political parties or sects originated, funded, or substantially influenced many, although not all, domestic human rights NGOs.

Unlike in 2013 international NGOs did not report significant problems with forced evictions, obtaining visas and government passes, repeated and intrusive inspections, delays in registration and renewal of registration, or arrest and torture of local staff members. In a few instances, domestic NGOs reported difficulty registering with the government and obtaining permits for their operations.

The law requires international NGOs that seek to register in the country to provide copies of the nationality certificates and civil status identity cards of their domestic staff and the passports and residence documents of their foreign staff. While international NGOs criticized this provision as inconvenient and time consuming, it was not widely considered a barrier to registration.

Areas administered by the Kurdistan regional government had an active community of mostly Kurdish NGOs, many of them closely linked to and funded by the PUK and KDP parties. By law government funding of NGOs is contingent upon whether an NGO's programming goals conform to already identified areas of priority. The region's NGO Directorate established formal procedures for awarding funds to NGOs, which included a public description of the annual budget for NGO funding, priority areas for consideration, deadlines for proposal submission, establishment of a grant committee, and the criteria for ranking proposals.

Several NGOs in the IKR reported security forces harassed their staffs. The women's rights NGO Warvin reported that officials at the region's Ministry of Interior demanded it apologize for its February report on violence against women in Syrian refugee camps in the IKR. When Warvin refused, officials distributed the report to Syrian refugee camps and called Warvin to warn that angry refugees might burn down its office.

Following the intensification of the conflict with ISIL and seizure of several cities in the north, there were reports of ISIL threats to NGOs and civil society activists in those areas.

The United Nations or Other International Bodies: The government sometimes restricted the access of United Nations and other international bodies to sensitive locations, including Ministry of Interior detention facilities. During the year the UN Office for the Coordination of Humanitarian Affairs coordinated a large-scale effort to manage the humanitarian crisis that followed ISIL's assault in the west and north. The government largely cooperated with the United Nations, the IOM,

and other international aid organizations to provide relief to the more than two million persons displaced since January.

Government Human Rights Bodies: The Ministry of Human Rights is responsible for monitoring human rights abuses and for assisting and advocating for victims. The ministry received and investigated complaints from citizens and published public reports addressing violations, including reports on prisons and detention centers; women's civil, economic, and political rights; minorities; and victims of terrorism. Lack of political independence, poor cooperation from other ministries, and limited resources hindered the ministry's effectiveness.

The constitution mandates the creation of an independent Iraqi High Commission for Human Rights (IHCHR). The law governing the IHCHR's operation provides for commissioners with four-year nonrenewable terms. No less than one-third of the 11 full-time and three reserve commissioners must be women, and minorities must be represented by at least one full-time member and one reserve member. The law provides that the IHCHR be financially and administratively independent and have broad authority, including the right to receive and investigate human rights complaints, conduct unannounced visits to correctional facilities, and review legislation. In 2013 the Council of Representatives budgeted 20 billion dinars (\$17 million) for the commission. The commission did not elect a president or select an adequate number of female commissioners in accordance with the law.

The Kurdistan regional government has a Human Rights Commission, headed by Diya Patruz, the former secretary general of the Chaldean National Congress (an umbrella group of 14 Christian political parties). Its personnel lacked human rights experience, and employees often owed their positions to party affiliation.

Section 6. Discrimination, Societal Abuses, and Trafficking in Persons

The constitution provides that all citizens are equal before the law without regard to gender, sect, opinion, belief, nationality, or origin. The law prohibits discrimination based on race, disability, or social status. The government was ineffective in enforcing these provisions.

Women

Rape and Domestic Violence: Domestic violence remained a pervasive problem, and the law did not always adequately protect rape victims. The law criminalizes rape (but not spousal rape) and permits a maximum sentence of life imprisonment

if the victim dies. The law allows a rape case to be dropped if the offender marries the victim. There were no reliable estimates of the incidence of rape or information on the effectiveness of government enforcement of the law. Due to social conventions and retribution against both the victim and perpetrator, victims of sexual crimes did not usually pursue legal remedies. The UN Development Program (UNDP) documented instances in which the families of rape victims demanded that the victim marry the rapist to maintain the family's honor. The UNDP reported that in some cases, when the victim refused the marriage, her family asked judges to intervene and require it.

Due to the continuing violence in the north, particularly ISIL-perpetrated attacks, women's status suffered severe setbacks. For example, the local press, foreign observers, and the United Nations reported that ISIL perpetrated a mass kidnapping of more than 1,000 Yezidi women during July and August. Reports from multiple sources indicated the ISIL kidnappers sold the women to other ISIL fighters as sex slaves or "brides." The status of the majority of these women and girls remained unknown.

Domestic violence, as such, is not a prosecutable offense. Local and international NGOs and media reported that domestic violence often went unreported and unpunished, with abuses customarily addressed within the family and tribal structure. Harassment of legal personnel who sought to pursue domestic violence cases under laws criminalizing assault, as well as a lack of trained police and judicial personnel, further hampered efforts to bring perpetrators to justice. According to UNAMI's *Women in Iraq Factsheet* published in 2013, 46 percent of married women reported spousal violence, and 38 percent of women reported experiencing sexual violence by their husband at least once monthly.

In March 2013 the Council of Ministers approved a National Strategy for Combating Violence against Women to raise awareness and provide better access to services and remedies. The strategy focused on drafting and enacting legislation to make violence against women a prosecutable offense and prioritized inclusion of the Ministry of Interior to encourage federal police to become involved in the effort to combat violence against women. In April the government launched a "gender coordination task force" to bring together stakeholders from across government ministries and civil society to strengthen efforts to promote women's rights. The task force included the prime minister's advisor for women's rights; representatives of the Ministries of Human Rights, Women's Affairs, Health, and the Ministry of Interior's Family Protection Units; UNAMI, UN Women; and local NGOs, including the Iraqi Women's Network and the Women's Business Council.

Parliament failed to pass a draft Family Protection Law designed to provide greater protection against gender-based violence.

The Federal Ministry of Interior maintained 16 family protection units around the country, which aimed to resolve domestic disputes and establish safe refuges for victims of sexual or gender-based violence. These units tended to prioritize family reconciliation over victim protection and lacked the capacity to support victims. Hotlines went to the male commanders of the units, which did not follow a regular referral system to provide victims with services, such as legal aid or safe shelter. The family protection units in Basrah and Kirkuk, for example, were located in police stations and staffed primarily by male officers, making it difficult and unsafe for women to access them. Shelters for victims of domestic abuse were limited; the family protection units in most locations did not operate shelters. Safe houses, both those run by the government and NGOs, were often targets for violence.

The law in the IKR makes domestic violence, including physical and psychological abuse, threats of violence, and spousal rape, a crime. The government implemented the provisions of the law, creating a special police force to investigate cases of gender-based violence and establishing a family reconciliation committee within the judicial system, but local NGOs reported that these were not effective at combating gender-based violence.

In the IKR four women's shelters operated by the regional Ministry of Labor and Social Affairs and two private shelters provided some protection and assistance. Space was limited, and service delivery was poor. One private shelter in Kirkuk closed due to lack of funding. NGOs played a key role in providing services, including legal aid, to victims of domestic violence, who often received no assistance from the central government. Instead of utilizing legal remedies, authorities frequently attempted to mediate between women and their families so that the women could return to their homes. Other than marrying or returning to their families, which often resulted in further victimization by the family or community, there were few options for women accommodated at shelters.

In the IKR, according to statistics from the Ministry of Interior, between January and the end of May there were 58 cases of sexual assault against women, 100 incidents of women burned by others, 42 cases of women burning themselves, 10 female suicides, and 18 killings of women. Additionally, the regional Ministry of Interior cited 2,551 cases of abuse and harassment against women in the same

period. Local NGOs believed that many other cases of abuse and harassment went unreported.

Female Genital Mutilation/Cutting (FGM/C): There was no national law against FGM/C. The law in the IKR bans the practice. According to a 2013 UN Children's Fund (UNICEF) report, 1.3 million women between ages 15 and 49 suffered some form of FGM/C. During the year interviews conducted by the international human rights organization WADI and local women's rights organization PANA indicated that 25 percent of women in the central and southern parts of the country had been subjected to FGM/C. While the practice occurred throughout the country, it was most prevalent in Erbil and Sulaymaniyah provinces. According to the results of a study in Erbil released in January, 70.3 percent of women acknowledged having undergone some form of FGM/C. Several NGOs stated that the Erbil study confirmed anecdotal evidence that FGM/C remained a serious problem.

According to the Population Reference Bureau, a 2011 survey showed a slow decline in the prevalence of the procedure, with 10.3 percent of women ages 45 to 49 having experienced the procedure, compared with 4.9 percent of 15- to 19-year-old girls. The Women's High Council of the Kurdistan regional government conducted a joint FGM/C survey with the NGO Heartland in March and engaged in an awareness-raising campaign in cooperation with UNICEF. The local branch of the NGO WADI also joined with UNICEF to create eight roving teams in the IKR and one team in Kirkuk Province to raise awareness of FGM/C.

Other Harmful Traditional Practices: Honor killings remained a serious problem throughout the country. Some families arranged honor killings to appear as suicides. Since in the IKR some suicidal women resorted to self-immolation as a method of killing themselves, authorities at times refused to investigate certain cases. The law permits honor considerations to mitigate sentences; for example, a provision limits a sentence for murder to a maximum of three years in prison if a man is on trial for killing his wife or a female dependent due to suspicion that the victim was committing adultery.

In February the Council of Ministers approved a draft bill, known as the Jaafari Personal Status Law. International and local human rights activists, including the IHCHR, criticized the bill for violating the rights of women and children by establishing that religious, rather than civil, courts address personal status disputes. In particular, critics of the draft bill opposed provisions reducing the legal age for marriage to nine and 15 for girls and boys, respectively, and provisions banning

Muslim men from marrying non-Muslims. The existing law, which applies to all citizens regardless of sect, sets the legal age for marriage at 18 but allows for a judge to permit girls as young as 15 to be married in “urgent” cases. The Council of Representatives tabled a vote on the draft bill prior to the elections.

Women and girls were at times sexually exploited through temporary marriages, under which a man gives the family of the girl or woman dowry money in exchange for permission to marry her for a specified, limited period. Government officials and international and local NGOs also reported that the traditional practice of “fasl”--whereby family members, including women and children, are traded to settle tribal disputes--remained a problem, particularly in southern provinces.

According to multiple press reports, court-ordered virginity testing took place in Baghdad. Men who accused their wives of not being virgins the day after marriage could request a virginity test through the courts. The Medical Legal Institute reportedly conducted the tests and provided results directly to the courts.

Extremist groups and militias targeted women in violent attacks throughout the country. For example, on July 12, government officials reported that unidentified gunmen stormed an apartment complex in eastern Baghdad and killed more than 20 women and injured others. The apartments targeted were reportedly brothels, and the women allegedly were prostitutes.

Sexual Harassment: The law prohibits sexual relations outside marriage, including rape or sexual solicitation that may occur during sexual harassment. The penalties include fines and imprisonment. The law provides relief from penalties if unmarried participants marry. No information was available regarding the effectiveness of government enforcement. Due to social conventions and retribution against both the victim and perpetrator of sexual harassment, victims of sexual harassment usually did not pursue legal remedies. Because of the unequal social status of women, their fear of telling close relatives, and their distrust of the criminal justice process, victims rarely filed police complaints against their offenders. In most areas there were few or no publicly provided women’s shelters, information, or support hotlines and little or no sensitivity training for police.

Reproductive Rights: The government generally respected the basic rights of couples and individuals to decide the number, timing, and spacing of their children and to attain the highest standard of reproductive health free from discrimination, coercion, and violence. Nonetheless, due to general insecurity in the country and attendant economic difficulties, many women received inadequate medical care.

There were no reports of women being denied access to contraception or maternal health services because of a spouse or other family member withholding permission.

Discrimination: Although the constitution forbids discrimination based on gender, conservative societal standards impeded women's ability to enjoy the same legal status and rights as men in all aspects of the judicial system. Throughout the country women reported increasing social pressure to adhere to conservative social norms. Female employees were often pressured to wear, or questioned about not wearing, headscarves. After ISIL occupied Mosul in June, it imposed severe restrictions on women's movement and dress, and enforcement patrols by ISIL forces were reportedly routine occurrences. For example, female physicians in Mosul protested ISIL's campaign to force female doctors to wear the hijab, prevent female physicians from accessing the hospital if not dressed accordingly, and threaten with punishment those who failed to adhere to the rule.

Women experienced economic discrimination in access to similar work as men and generally did not receive equal pay for equal work (see section 7.d.). Deteriorating security throughout the year limited women's ability to work outside their homes. Weak labor laws and the lack of an equal opportunity employment law left women vulnerable to arbitrary dismissal. According to the Ministry of Planning's latest available statistics, more than 80 percent of women in urban and rural areas were economically inactive in 2011. Government efforts to combat economic discrimination against women were minimal and unsystematic. Despite the existence of a widow-stipend program through the Ministry of Labor and Social Affairs, confusing bureaucratic procedures and significant processing delays, compounded by illiteracy, hindered an estimated 900,000 widows from accessing the ministry's social support. Some NGOs believed the number of widows greatly exceeded the ministry's estimate, with organizations reporting the existence of more than 1.5 million widows or households headed by women. The number likely increased during the year due to escalating violence.

Law and custom generally did not respect freedom of movement for women. For example, the law prevented a woman from applying for a passport without the consent of her male guardian or a legal representative. In ISIL-controlled areas, ISIL forces reportedly forbade women from leaving their homes unless male relatives escorted them and prevented professional women from returning to work, with the exception of medical workers and teachers.

The Ministry of State for Women's Affairs, with a small professional staff, functioned primarily as an advisory office without an independent budget. Civil society and women's rights groups continued to express concern regarding the ministry's commitment to solving problems facing women. NGO leaders alleged the ministry was not committed to the principle of women as equal members of society and to female economic empowerment but rather focused only on security and protection for women.

Children

Birth Registration: The constitution states that anyone born to at least one citizen parent is a citizen. Failure to register births resulted in the denial of public services such as education, food, and health care. To register a birth, authorities require a marriage certificate and identification from both parents and a death certificate if a parent is deceased. Single women and widows often had problems registering their children. Although in most cases authorities provided birth certificates after registration of the birth through the Ministries of Health and Interior, this was reportedly a lengthy and at times complicated process. The government was generally committed to children's rights and welfare, although it denied benefits to noncitizen children. Families of noncitizen children had to pay for services, such as public schools and health services that were otherwise free.

Education: Primary education is compulsory for citizen children for the first six years of schooling and is neither free nor compulsory for noncitizen children. Equal access to education for girls remained a challenge, particularly in rural and insecure areas, and approximately 30 percent of women between ages 12 and 24 were illiterate, compared with 13 percent of men. UNICEF estimated that net primary school enrollment was 93 percent for boys and 87 percent for girls. The net overall completion rate for primary school was 44 percent. Every year 450,000 children of primary-school age either did not complete primary school on time or dropped out of school. The IKR primary school completion rate was among the highest in the country, with 65 percent of children completing primary school on time. A lack of identification documents, limited income with which to purchase required supplies, and a lack of transportation often prevented IDP children from attending schools.

Due to the continuing conflict, the academic school year was delayed as IDPs throughout the country sheltered in schools.

Child Abuse: Violence against children remained a significant problem. According to a UN-supported study in 2011 (the latest year for available comprehensive figures), 46 percent of girls between the ages of 10 and 14 were exposed to family violence. In 2013 the Council of Representatives amended the social care law to increase protection for children who were victims of domestic violence. The amendment also calls for protection and care of children in shelters, state houses, and orphanages. Implementation of the law continued at year's end.

The Kurdistan regional government's Ministries of Labor and Social Affairs, Education, and Culture and Youth established a toll-free hotline to report violations against, or seek advice regarding, children's rights. The hotline received more than 10,000 calls between January and November, according to government data. Following a regional government awareness-raising campaign at refugee and IDP centers, the hotline also received 332 calls from those populations in the month of July.

Early and Forced Marriage: According to law the minimum age of marriage is 15 with parental permission and 18 without. The government made few efforts to enforce the law. Traditional forced marriages of girls as young as age 11 continued, particularly in rural areas. According to the government's 2013-17 *National Action Plan to Combat Violence Against Women*, 23 percent of girls were married between ages 15 and 18.

Local and international NGOs reported that forced divorce--the practice of husbands or their families threatening to divorce wives they married when the girls were very young (ages 12 to 16) to pressure the girl's family to provide additional money to the girl's husband and his family--also occurred, particularly in the southern provinces. Victims of forced divorce were compelled to leave their husbands and their husbands' families, and social customs regarding family honor often prevented victims from returning to their families, leaving some adolescent girls abandoned.

Kurdistan regional government law bans child marriage and the practice of forcing children to drop out of school. Some IKR residents reportedly traveled to the provinces of Diyala, Kirkuk, and Ninewa, where there are no laws prohibiting child marriage, to circumvent the IKR's ban on child marriage.

Female Genital Mutilation/Cutting (FGM/C): Despite being illegal in the IKR, FGM/C remained common among Kurdish girls, particularly in rural communities. The type of FGM/C commonly utilized was the partial or total removal of the

clitoris and excision of the labia. A joint 2013 study by UNICEF and the government found that one in two girls in Erbil and Sulaymaniyah provinces had experienced FGM/C. A January study by Erbil Hospital reported 60.2 percent of FGM/C procedures were performed on girls between ages four and seven. The practice existed in other parts of the country, but little reliable data existed to determine its extent, particularly among younger girls.

Sexual Exploitation of Children: The law prohibits sexual relations outside of marriage for any reason. Because sex outside marriage is always illegal, the age of consensual sex is de facto the minimum marriage age. The law does not specifically address the commercial exploitation of children but prohibits pornography of any kind, including child pornography. During the year there were multiple reports of ISIL forces abducting girls and forcing them into marriage with ISIL fighters (see section 1.g.). Child prostitution was a problem, and anecdotal evidence suggested that the problem was particularly serious among Syrian Kurd refugees in the IKR. Because the age of legal responsibility was nine in the central region and 11 in the IKR, authorities often treated sexually exploited children as criminals instead of as victims. Penalties for the commercial exploitation of children range from fines and imprisonment to the death penalty. No information was available regarding the effectiveness of government enforcement.

Child Soldiers: UNICEF reported cases of recruitment of child soldiers and children engaging in armed violence on behalf of ISIL and other illegal armed groups. According to the Iraqi Corrections Service, in November Ministry of Justice facilities held 172 juveniles, convicts, and pretrial detainees, some convicted of, or charged with, assisting armed groups.

Displaced Children: Insecurity and active conflict between government forces and ISIL caused the displacement of large numbers of children. Due to the conflict in Syria, many children and single mothers from Syria also took refuge in the IKR (see section 2.d.).

International Child Abductions: The country is not a party to the 1980 Hague Convention on the Civil Aspects of International Child Abduction. For country-specific information, see the Department of State's report at travel.state.gov/content/childabduction/english/country/iraq.html.

Anti-Semitism

A very small number of Jewish citizens lived in Baghdad, and there were unconfirmed reports that small Jewish communities existed in other parts of the country. There were no reports of anti-Semitic acts.

Trafficking in Persons

See the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

Persons with Disabilities

Although the constitution states that the government, through law and regulations, should care for and rehabilitate persons with disabilities in order to reintegrate them into society, there are no laws prohibiting discrimination against persons with physical, sensory, intellectual, or mental disabilities in employment, education, air travel and other transportation, access to health care, or the provision of other state services. There were reports that persons with disabilities continued to experience discrimination due to social stigma. Although the Council of Ministers issued a decree ordering access for persons with disabilities to buildings and to educational and work settings, incomplete implementation limited access. Local NGOs reported that many children with disabilities dropped out of public school due to insufficient physical access to school buildings, a lack of appropriate learning materials in schools, and a shortage of teachers qualified to work with children with developmental or intellectual disabilities. The Union for the Rights of the Disabled, a local NGO, reported that land mines and explosive remnants had a disproportionate impact on children--approximately 25 percent of all victims were children under age 14.

The Council of Representatives passed a law in 2013 establishing a commission for persons with disabilities and special needs to be led by the minister of labor and social affairs but to remain independent of the government. At year's end the government had not established the commission; instead, the Ministry of Labor and Social Affairs created a department within the ministry to carry out such functions. The Kurdistan regional government has a similar law.

In 2013 the Council of Ministers approved a 3-percent public sector employment quota for persons with disabilities, but employment discrimination persisted, and observers projected that the quota was not likely to be met by year's end (see also section 7.d.). Central government and Kurdistan regional government officials reported they had few resources to accommodate individuals with disabilities in

prisons, detention centers, and temporary holding facilities. Mental health support for prisoners with mental disabilities did not exist.

The Ministry of Health provided medical care, benefits, and rehabilitation, when available, for persons with disabilities, who could also receive benefits from other agencies, including the Prime Minister's Office. The Ministry of Labor and Social Affairs operated several institutions for children and young adults with disabilities.

National/Racial/Ethnic Minorities

The country's population included Arabs, Kurds, Turkmen, and Shabak as well as religious minorities, including Chaldeans, Assyrians, Armenian Orthodox, Yezidis, Sabeen-Mandaeans, Bahai, Kakai, and a very small number of Jews. The country also had a small Romani community, as well as an estimated one million citizens of African descent, referred to as "black Iraqis," who resided primarily in Basrah and the south.

ISIL's targeted violence and discrimination against ethnic minorities, who were often Shia, was a significant problem. In areas under its control, ISIL also committed numerous abuses against Yezidis, Shabaks, Christians, and other minority communities, including execution, kidnapping, rape, expulsion, theft, and destruction of property. Activists from religious and ethnic minority communities faced the greatest risk, prompting many to avoid activism. Other illegal armed groups also targeted ethnic minority communities (see section 1.g.).

Black Iraqis continued to face systemic societal discrimination. Many lived in extreme poverty with high rates of illiteracy and unemployment. The Institute for International Law and Human Rights, an international NGO, reported that although the government directly or indirectly employed as many as 70 percent of the country's citizens working in the formal economy, no Black Iraqi held a high-level position in government or served in an elected body.

There were reports of Kurdistan regional government authorities discriminating against minorities, including Turkmen, Arabs, Yezidis, Shabaks, and Christians, both in the disputed territories and in the Kurdistan region. In August the Asayish in Dahuk reportedly refused to allow a Yezidi IDP family to stay with other IDPs in a public school after the father insisted on identifying his ethnicity as Yezidi instead of Kurd.

Although Arabs are the majority in most of the country, they are a minority in Kirkuk, and Arab residents of the city frequently charged that Kurdish security forces targeted Arab communities. Arab residents of Kirkuk alleged that provincial authorities used the pretext of terrorist attacks to impose curfews on them and arrest Arabs who were without legal-resident permits. Residents reported these raids by provincial authorities increased in June after ISIL took over areas of Kirkuk Province, which remained the site of frequent fighting between Kurdish forces and ISIL. Beginning in June Kirkuk provincial authorities, citing security concerns, also significantly limited the ability of IDPs, many, if not a majority, of whom were Arabs, to enter the areas of Kirkuk controlled by the Kurdistan regional government. Many Arab IDPs were unable to work because the 1957 census did not record them as residents of Kirkuk, which the provincial government in Kirkuk used as a basis for legal employment. Arabs in Kirkuk also alleged discrimination by Kurdish and Turkmen officials in filling senior positions in the provincial government.

A 2006 law prevents Palestinians from obtaining citizenship. According to press reports, authorities continued to detain, harass, and abuse Palestinians for their stateless status (see section 2.d.). The UNHCR also reported that Palestinians who were compelled to leave the country for Syria without proper exit documentation during past periods of sectarian violence faced prosecution upon their forced return from Syria.

Local and international NGOs reported that the Romani population of approximately 120,000 experienced poor access to state services as well as economic and social discrimination.

Acts of Violence, Discrimination, and Other Abuses Based on Sexual Orientation and Gender Identity

Neither hate crime nor antidiscrimination laws exist, nor do other criminal justice mechanisms exist to aid in the prosecution of crimes motivated by bias against members of the lesbian, gay, bisexual, and transgender (LGBT) community.

No law specifically prohibits consensual same-sex sexual activity, although the law prohibits sodomy, irrespective of gender. There was no data on prosecutions for sodomy. Due to social conventions and intimidation, including violence, against consensual or nonconsensual participants, same-sex sexual conduct was generally unreported.

In light of the law, authorities relied on public indecency charges or confessions of monetary exchange (i.e., for prostitution, which is illegal) to prosecute same-sex sexual activity. Authorities used the same charges to arrest heterosexual persons involved in sexual relations with persons other than their spouses.

The law prohibits discrimination based on race, disability, or social status, but it does not address discrimination based on sexual orientation or gender identity. Societal discrimination in employment, occupation, and housing based on sexual orientation, gender identity, and unconventional appearance was common (see section 7.d.). Information was not available regarding discrimination in access to education or health care, although the media reported that students were harassed at school for not adopting conventional clothing or hairstyles.

Due to stigma, intimidation, and potential harm, including violent attacks, LGBT organizations did not operate openly, nor were there gay pride marches or gay rights advocacy events. LGBT persons often faced abuse and violence from family and nongovernmental actors. In addition to targeted violence, members of the LGBT community remained at risk for honor crimes, since their conduct did not conform to traditional mores and gender norms. LGBT rights groups attributed the lack of publicized cases of attacks to the low profile of members of the LGBT community, who altered their public dress and lifestyle to conform to societal norms. NGOs established shelters for individuals who feared attacks and continued to take in victims. They periodically received threats and relocated shelters for security reasons. Community activists reported that violence and intimidation continued.

Following a series of attacks on LGBT persons in 2012, the Council of Ministers established an interministerial committee to investigate the attacks and provide recommendations on LGBT rights. The committee established a charter to provide for the baseline protection owed to members of the LGBT community and issued a statement declaring that LGBT individuals were “no different” from other citizens. The committee did not complete its report and recommendations by year’s end. Despite repeated threats and violence targeting LGBT individuals, the government failed to identify, arrest, or prosecute attackers or to protect targeted individuals.

HIV and AIDS Social Stigma

UNAIDS, the Joint UN Program on HIV/AIDS, characterized the prevalence of HIV/AIDS as low, with a small number of officially reported HIV cases. There were no media or NGO reports of physical violence against persons with

HIV/AIDS, but the topic was socially sensitive and not discussed publicly. For example, unknown persons, neighbors, and even family members sometimes harassed and threatened persons with HIV/AIDS, alleging that being infected was “evidence of sin.” HIV/AIDS-related stigma and discrimination contributed to the spread of HIV, according to UNAIDS, and the government worked to reduce discrimination through public education campaigns. The government also provided medical care and government stipends to persons with HIV/AIDS.

HIV testing was mandatory for prisoners convicted for sexual offenses, blood donors, newly diagnosed tuberculosis cases, and individuals seeking to be married. There were also HIV/AIDS travel restrictions for all visitors to the country. According to UNAIDS, no systematic HIV testing was conducted among key populations at higher risk, such as sex workers, men who have sex with men, and IV drug users. Due to widespread stigma and discrimination, social marginalization, and at times severe physical violence, these groups often avoided HIV testing due to fear of being exposed. Reliable statistics on the epidemic, therefore, were not available.

Section 7. Worker Rights

a. Freedom of Association and the Right to Collective Bargaining

The constitution states that citizens have the right to form and join unions and professional associations, but it does not permit independent unions. The law does not prohibit antiunion discrimination nor provide reinstatement for workers fired for union activity. Contradictory laws from the Saddam Hussein era prohibit collective bargaining. The law barring unions from holding funds, collecting dues, and maintaining assets, in addition to the prohibition on formal labor unions outside the General Federation of Iraqi Workers, deprived workers of the freedom of association.

A Saddam Hussein-era law bans all public sector trade union activity. It designates public sector employees as “government officials” and, as such, denies them the right to organize or strike. The law also considers individuals employed by state-owned enterprises, who made up approximately 10 percent of the workforce, as public sector employees.

Private sector employees in worksites employing more than 50 workers may form workers committees--subdivisions of unions with limited rights--but most private sector businesses employed fewer than 50 workers.

Labor courts have the authority to consider alleged labor law violations and disputes, but no information was available concerning enforcement of the applicable law, including whether procedures were prompt or efficient.

No law prevents government and employer interference in trade union activities. Strikers and union leaders reported threats and harassment by government officials during the year. They also asserted that ministries and state-owned enterprises used fines, demotions, suspension from work, and forced transfers to punish labor activists and discourage union activity. Unions reported that authorities arrested labor leaders and activists for their activities. For example, at least 16 oil union workers faced combined fines of 696.6 million dinars (\$595,000) for engaging in union activity and organizing protests, according to industry reporting. Union leaders also cited corruption within the government as a continuous problem, with government officials imposing arbitrary fines on workers for such activities as calling for demonstrations and traveling outside the country on union business without prior approval.

Collective bargaining in the public sector was prohibited, and government authorities sometimes violated private sector employees' collective bargaining rights. Because unions had no legal power to negotiate with employers, protection of worker rights through collective bargaining was not possible. The absence of collective bargaining and collective contracts at national and local levels significantly diminished unions' ability to defend worker rights and workers' access to social protection. Some unions were able to play a supportive role in labor disputes, and they had the right to demand government arbitration.

Antiunion discrimination occurred in the private sector. Employers interfered in union functions and threatened or punished workers for union activity.

In the IKR there were reports of strikes by union members without interference from the Kurdistan regional government. For example, the media reported that teachers went on strike February 3, after delays in the payment of their salaries.

b. Prohibition of Forced or Compulsory Labor

The law prohibits all forms of forced or compulsory labor, but the government did not effectively monitor or enforce the law.

Foreign migrant workers, particularly construction workers, security guards, cleaners, handymen, and domestic workers, were subjected to forced labor, confiscation of travel and identity documents, restrictions on movement and communications, physical abuse, sexual harassment and rape, withholding of wages, and forced overtime. There were cases of employers withholding travel documents, stopping payment on contracts, and preventing foreign employees from leaving the work site.

Women were subjected to involuntary domestic service through forced marriages and the threat of divorce, and women who fled such marriages or whose husbands divorced them were vulnerable to further forced labor. Due to the deterioration in the security situation, female IDPs were increasingly vulnerable to economic exploitation and discriminatory employment conditions. According to local sources, ISIL exploited as many as several thousand Yezidi and other minority women and girls sexually and economically (see also sections 1.g. and 6).

Also see the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

c. Prohibition of Child Labor and Minimum Age for Employment

The constitution and law prohibit child labor. The minimum age for employment is 15. The law limits working hours for persons younger than age 18 to seven hours a day and prohibits employment in work detrimental to health, safety, or morals of anyone younger than age 16. Children between ages 12 and 14 are not required to attend school but are not permitted to work and thus were vulnerable to the worst forms of child labor (see section 6, Children). Children employed in family enterprises are exempt from some protections with regard to employment conditions. There were anecdotal reports, for example, of children performing hazardous work in family-owned businesses, such as in brick making and auto repair shops.

Child labor, including in its worst forms, occurred throughout the country, and armed groups recruited some children for their use. A joint study by UNICEF and the government in 2012 found that 500,000 children between ages five and 14, mostly in rural areas, were working. The latest available World Bank statistics reported that approximately 13 percent of children under 14 were involved in child labor as of 2011.

The inspection service of the Ministry of Labor and Social Affairs sought to comply with the law prohibiting child labor in the private and public sectors. In 2012, the most recent period for which data is available, the ministry reported authorities closed 88 businesses for child labor violations. Inspections continued, and the inspection service cooperated with UNICEF to collect additional data. Due to capacity constraints as well as the focus on maintaining security and fighting terrorism, efforts by law enforcement personnel and labor inspectors to monitor these practices were not effective, and penalties for violations did not serve as a deterrent. By law violators were subject to imprisonment for a period of 10 days to three months or to a fine of 100 to 300 dinars (\$0.09 to \$0.26). Qualitative data on child labor practices was limited, particularly with regard to the worst forms of child labor, a factor that further limited effective enforcement of existing legal protections.

There was no recent survey of the child labor situation in the IKR, but local NGOs believed that child labor increased due to the influx of Syrian Kurd refugees. The Kurdistan regional government's Ministry of Labor and Social Affairs operated a 24-hour hotline for reporting labor abuses, including child labor, and the hotline received approximately 100 calls per month.

There were reports that ISIL and other armed groups recruited children to gather intelligence, staff checkpoints, and serve as couriers (see section 1.g., section 6, Children, and section 7.b.). There was no evidence that the government purposely recruited children into the armed forces. There were reports that criminal gangs subjected children to forced begging and other types of forced labor. Children often worked illegally on farms as seasonal agricultural labor or in street commerce such as begging or peddling.

See also the Department of Labor's *Findings on the Worst Forms of Child Labor* at www.dol.gov/ilab/reports/child-labor/findings/.

d. Discrimination with Respect to Employment or Occupation

The constitution prohibits discrimination based on gender, race, ethnicity, nationality, origin, color, religion, or economic or social status. It does not prohibit discrimination based on sexual orientation. Authorities did not adequately enforce prohibitions on discrimination.

Discrimination in employment and occupation occurred with respect to women, foreign workers, and minorities (see section 6). For example, the law gives

migrant Arab workers the same status as citizens but does not provide the same rights for non-Arab migrant workers, who faced stricter residency and work visa requirements.

e. Acceptable Conditions of Work

In July 2013 the Ministry of Labor and Social Affairs increased the minimum wage for unskilled workers from 120,000 dinars (\$103) per month to 250,000 dinars (\$214) per month. Wages were set by contract in the private sector and by the government in the public sector. The Council of Ministers approved changes to the public sector pay scale, which took effect in January, to reduce the pay gap between low- and high-ranking employees. The changes also reduced wage disparities among government ministries and canceled extra wages issued to employees in Baghdad's International Zone.

The Central Organization of Statistics and Information Technology reported that the average annual salary in 2009--the latest year for which information was available--was approximately 2.4 million dinars (\$2,050). These earnings remained two to three times the poverty level, defined in the 2009 central organization report as 923,000 dinars (\$790) per person per year.

The law limits the standard workday to eight hours, with one or more rest periods totaling 30 minutes to one hour. The law permits up to four hours of overtime work per day and requires premium pay for overtime work. The government sets occupational health and safety standards. The law provides workers the right to remove themselves from a situation endangering health and safety without prejudice to their employment but does not extend this right to civil servants or migrant workers, who made up the majority of the country's workforce.

The Labor Directorate in the Ministry of Labor and Social Affairs has jurisdiction over labor law, child labor, wages, occupational safety and health topics, and labor relations. The government did not enforce regulations governing working conditions. The ministry's occupational safety and health staff worked throughout the country, but the lack of a law governing these inspections hindered compliance and enforcement efforts. In December 2013 the government launched a Social Safety Net program to assist the unemployed and persons with disabilities in gaining access to financial aid and benefits from the government; at its inception the program covered more than one million persons.

The legal and regulatory framework, combined with the country's high level of violence and insecurity, high unemployment, large informal sector, and lack of meaningful work standards, resulted in unacceptable conditions for many workers. Workplace injuries occurred frequently, especially among manual laborers.

A lack of oversight and monitoring of employment contracts left foreign and migrant workers vulnerable to exploitative working conditions and abusive treatment. Little information was available on the total number of foreign workers in the country, although some observers reported that large groups of migrant workers, many of them in the country illegally, lived in work camps, sometimes in substandard conditions. For example, UNAMI reported that many South Asian workers without appropriate work permits and visas lived in work camps and lacked freedom of movement, since they could be subject to arrest outside of the camps for residing and working in the country illegally. Due to the deterioration in security and conflict throughout western and northern Iraq, many foreign workers departed the country, or their companies or home governments evacuated them.